

SUN CITY HILTON HEAD

Design Guidelines



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1. Introduction & Procedures

1.1 Welcome to Sun City Hilton Head

Sun City Hilton Head is an active adult community designed to respect the visual character of its site, minimize environmental impacts and maximize water and energy conservation principles. In order to preserve and enhance these principles, these Design Guidelines are established to maintain the integrity of the architectural and design characteristics of Sun City Hilton Head.

The Design Guidelines provide an overall framework to allow the community to develop and progress in an orderly and cohesive manner, implementing planning concepts and philosophy which are required by regulatory agencies and desirable to residents and to preserve the character and beauty of the community of our property owners. The Design Guidelines include standards for the design, size, location, style, structure, materials, color, mode of architecture, mode of landscaping, and relevant criteria for the construction and modifications of improvements of any nature.

The Design Guidelines were originally prepared by Del Webb Communities, Inc., as the Declarant pursuant to the Declaration of Covenants, Conditions and Restrictions for Sun City Hilton Head (CC&Rs) recorded in the Registrar of Deeds for Beaufort County and Jasper County, South Carolina. The Design Guidelines may be changed and amended to serve the needs of an evolving community pursuant to the procedures set forth in the Declaration and in these Design Guidelines.

To the extent that any CC&Rs government ordinance, building code or regulation (“government standards”) requires a more restrictive standard than that found in these Design Guidelines or the CC&Rs, the government standards shall prevail. To the extent that government standards are less restrictive than these Design Guidelines, or any standard contained therein, or the CC&Rs, the Design Guidelines and CC&Rs shall prevail.

1.2 Area Specific Guidelines

Riverbend Homes

The Custom Home Design Guidelines for Riverbend Neighborhood applies to homes in the Riverbend Neighborhood. If the Custom Home Guidelines are silent or in conflict on a subject, the Sun City Hilton Head Design Guidelines will apply.

Villa and Cottage Homes

Homes in Villa or Cottage Neighborhoods are also subject to supplemental CC&Rs and special guidelines contained in **Appendix E – Special Guidelines for Villas and Cottages**.

Jasper County Homes

Homes located in Jasper County are subject to supplemental CC&Rs and special guidelines contained in **Appendix G – Guidelines for Homes in the Jasper County Section of Sun City Hilton Head**. In all other instances these guidelines are applicable.

1.3 Governmental Requirements

It is the responsibility of the Owner to obtain all necessary permits and approvals from the appropriate municipal, county, state or federal governmental agencies before beginning work on a project. Beaufort or Jasper County or the City of Hardeeville, if applicable, may require certain permits depending on the proposed change, alteration, or addition. It is the Owner’s responsibility to comply with permit requirements and provide the Reviewing Body copies of any such required permits if so requested. To the extent that any government law, ordinance, building code or regulation requires a more restrictive standard than those found in these Design Guidelines or the CC&Rs, the government standards shall prevail. Before planning any improvements to your home or landscaping requiring approvals under these Design Guidelines, we encourage you to consult with the appropriate governmental entity to determine the applicable governmental requirements. To the extent that an applicable law, ordinance, building code or regulation is less restrictive than these Design Guidelines or the CC&Rs, the CC&Rs and Design Guidelines shall prevail.

1.3.1 Building Permit Approval

If the plans submitted by an Owner require a building permit, the approval by the Reviewing Body is not a guarantee that such plans will be approved by the appropriate governmental agency. If the appropriate

governmental agency requires modification to such plans, such modifications shall also be approved by the Reviewing Body in order for the Owner to comply with these guidelines.

1.4 Community Standards Department

The Community Standards Modification Department provides day-to-day administration of the property modification process. Office personnel receive and process all modification applications, present them to the Modifications Committee for review, communicate committee decisions to residents, maintain records of property modifications, and assist homeowners in preparing modification applications. The Modifications Committee may authorize the Community Standards Modification Department staff to review and approve modification applications for routine recurring projects by approving a list of such items and establishing decision criteria for each as needed. Instances of unapproved or uncompleted modifications identified by residents or committee members are referred to the Community Standards Department for enforcement action as appropriate.

1.5 Required Approvals

Homeowners are required to submit an application online or in person for the Modifications Committee or Modification staff to review and approval prior to commencing any exterior property modification, including, but not limited to:

- Construction of house additions, including screen enclosures, glass sunrooms and modifications to any previously approved additions.
- Changes to the exterior appearance of the original house or other exterior improvements.
- Pool or spa installations.
- Changes or additions to hardscape, such as paving, brick, masonry, concrete, rocks, flagstone, or any inert material. Also any permanent outdoor barbeques, fountains or water features.
- Changes or additions to landscaping, including the original landscaping.
- Addition of lighting or antennae.
- All Exterior color changes.
- Alterations in grades or drainage.

1.5.1 Modifications Not Requiring Application and Approval

Changes to the interior of a house or installation of temporary holiday decorations do not require Modifications Committee approval. Refer to the Schedule of Fees and Community Rules for holiday decoration time restraints and restrictions. Landscape accessories not requiring approval are listed in **Appendix B – Landscape Accessory Guide**.

1.5.2 Advance Approval

All applications, drawings, specifications and sample materials shall be submitted to the Modifications Committee for approval prior to work commencing. See application instructions for specific details. Installation of a modification prior to seeking or obtaining approval is not a means for obtaining automatic approval. Homeowners shall be required to remove or modify unapproved projects that do not meet specified guidelines and shall be subject to enforcement action.

1.5.3 No Precedent

Existing property modifications do not set a precedent for future applications. All applications will be reviewed on their individual merit considering the current Design Guidelines and the specific location of the house with respect to the neighborhood and surroundings.

1.5.4 Homeowner Responsibilities

It is the responsibility of each homeowner to comply with all requirements of these Design Guidelines, in addition to the CC&Rs and any applicable Supplemental CC&Rs.

1.5.5 Review Process

The Reviewing Body established by the Board of Directors is a resident volunteer committee known as the Modifications Committee. In addition to the specifics contained in these guidelines, the Modifications

Committee uses the following criteria to evaluate a modification application:

- Does the modification comply with applicable community documents?
- Does the modification enhance the appearance of the existing house and/or lot?
- Is the modification harmonious in form, size, and color with the neighborhood, the house's architectural design and building mass?
- Is the modification free from size, shape, style, placement or other characteristics that make it excessively visually predominant, contrasting, or attention-drawing within the context and character of the neighborhood?

1.5.6 Inadvertent Approval

If the Modifications Committee or Community Standards Modification Department approves a modification that violates the Design Guidelines or the CC&Rs, the Modifications Committee and Community Standards Modification Department are under no obligation to repeat the exception for subsequent applications.

NO WORK SHALL COMMENCE ON ANY EXTERIOR MODIFICATION UNTIL PLANS HAVE BEEN SUBMITTED AND APPROVED BY THE MODIFICATIONS COMMITTEE AND/OR THE COMMUNITY STANDARDS MODIFICATION DEPARTMENT PLUS ANY REQUIRED GOVERNMENT AGENCIES AND A CURRENT APPROVED NOTICE TO PROCEED ISSUED AND POSTED.

2. Fees, Fines, and Inspections (Refer to Schedule of Fees and Community Rules for details)

2.1 Application Fees

The Sun City Hilton Head Community Association, Inc. ("Community Association") may charge a fee for processing homeowner applications for property modifications. The Schedule of Fees and Community Rules are available on the Sun City Hilton Head community website, www.SunCityHiltonHead.org.

2.1.2 Extension Fees

Approved modifications that are not completed within 120 days from the issuance of the notice to proceed, or the date the building permit is issued, the Notice to Proceed must be extended by obtaining a fee based approved 30-day extension from the Community Standards Modification Department. Additional necessary extensions are available in 15-day increments and shall be approved by the Community Standards Modifications Department. For extension fees, refer to the Schedule of Fees and Community Rules, which are available on the Sun City Hilton Head community website at www.SunCityHiltonHead.org.

2.1.3 Plot Plan Copying Fees

For homeowners who do not furnish a copy of their original developer-produced plot plan with their modification application, the Community Standards Department may furnish a copy from their files, if available, per the Schedule of Fees and Community Rules.

2.1.4 No Permit Fines

If a homeowner starts or completes a modification to the exterior of a residence without an approved modification application and Notice to Proceed, or if a completed modification varies from approved plans, the homeowner may be liable for a no-permit fine per the Schedule of Fees and Community Rules, as well as any applicable application fee.

2.1.5 Inspections

Modifications Committee members and/or Community Standards Department staff may conduct periodic inspections of work in progress and completed work to verify adherence to approved plans and timely completion. These inspections review the exterior appearance of the project on behalf of the Community Association and are not a substitute for homeowner supervision of the homeowner's contractor. Final inspections will be conducted after 120 days from initial approval of the modification application unless an extension in construction time has been requested and approved. Inspectors will verify project completion in accordance with the approved application. Projects uncompleted in the prescribed time and projects with unapproved changes will be referred to the Community Standards Department for corrective action with the homeowner.

2.1.6 Leased and Unoccupied Property

With respect to the Design Guidelines, homeowners are responsible for the actions of their lessees and shall sign applications for modification requests for their property. Nonresident owners are still responsible for compliance with all guidelines. Absence from the area does not relieve the homeowner from the responsibility to promptly correct any noncompliance with the Design Guidelines.

3. Reviewing Body and Residential Property Owner Requirements

3.1 Reviewing Body

Article XI of the CC&Rs establishes procedures and policies to maintain the integrity of the architectural and design character of Sun City Hilton Head, including review and appointment of related committees. Until one hundred percent (100%) of the Properties have been developed and conveyed to homeowners, the Declarant has exclusive authority to administer and enforce architectural controls and to review and act on all applications for original construction within Sun City Hilton Head. This right can only be surrendered prior to that time by a recorded written instrument executed by the Declarant.

The CC&Rs directs the Board to establish a Modifications Committee to have exclusive jurisdiction over modifications, additions, or alterations to existing structures on lots and the adjacent open space. The Board has the right to veto an action taken by the Modifications Committee which the Board determines, in its sole discretion, to be inconsistent with the Design Guidelines. For purposes of these Design Guidelines, the “Reviewing Body” refers either to the Modifications Committee or the Community Standards Modification Department as appropriate under the circumstances.

3.2 Homeowner Responsibilities

Homeowners shall comply with these Design Guidelines in addition to CC&Rs, Board Policies, Schedule of Fees and Community Rules and any applicable Supplemental CC&Rs. Homeowners shall submit plans (described below) and receive written approval from the Reviewing Body prior to performing any of the work outlined.

3.2.1 Work Performed by Contractors

Homeowners are responsible for the timely completion of modification projects per the approved application. Failure of contractors or other agents to complete work on time or performing work at variance with the approved plans will result in Community Association action against the homeowner and possible exclusion of the contractor from the property as outlined in Article XI: Architectural and Design Standards of the CC&Rs. The Modifications Committee does not deal with homeowner’s contractors nor intervene in disputes between homeowners and their contractors. Homeowners are cautioned to select their contractors carefully and monitor their performance for both timeliness and adherence to the approved plans.

3.2.2 Timely Completion

On-time completion of approved work is essential to minimize neighborhood disruption and lingering “construction zone” appearance. If work is not completed prior to the expiration of the approval notice and extension requests have not been granted, the homeowner is conducting modifications without a valid approval and is subject to enforcement action.

3.2.2.1 Modification Extension Request

If a modification is not completed in 120 days from the Notice to Proceed date, Homeowners must apply for a 30-day expiration date extension.

3.3 Modification Application Requirements

3.3.1 Application Forms

The Community Standards Department will provide modification application forms for homeowner use, some applications may be found online. In addition to the basic application form, additional forms may be required for specific projects such as house painting, swimming pools, and satellite antennas. Each form contains a list of required attachments to be included with the application. Homeowners may obtain copies of needed forms at no charge from the Community Standards Department or on the Sun City Hilton Head website,

www.SunCityHiltonHead.org. Forms will be revised as needed to improve the efficiency and accuracy of the modification process. Staff members will assist and advise homeowners who have questions about preparing modification applications.

3.3.1.2 Complete Package Required

Homeowners shall fill out application forms completely and attach any required documents such as elevations, plans, plot plans, photos, material samples and product information/specifications.

3.3.1.3 Applications Shall Be Self Supporting

Review decisions will be based on the information included in the application package. Incomplete packages will be returned to the homeowner for resubmission. Homeowners with particularly complex projects may obtain advice from the Community Standards Modification Department staff prior to submission. Applications that require revision or additional information will be returned to the homeowner with the Modifications Committee's review comments. In some instances, the **chairperson** may direct a visit by committee members to obtain additional site information or clarify details prior to a committee vote on the proposed modification.

3.3.1.4 Plot Plans

Scaled plot plans (identifying how the proposed modification will be imposed on the lot may be required for all applications). Elevations (identifying how the proposed modification will look upon completion) may also be required. Original homeowners should ensure that they retain their original developer plot plan copies. Previous additions shall be clearly identified on the plot plan and included with any applications for future modifications. Homeowners may request copies of plot plans for their lot from the Community Standards Department when available.

3.3.1.5 Multiple Items on a Single Application

Each application shall contain only those items related to a single project. Homeowners shall submit separate applications for unrelated modifications.

3.3.1.6 Incomplete Applications

Incomplete applications will be returned to the homeowner for revision. Processing time standards do not commence until a complete application is received.

3.3.1.7 Signature and Submission

Applications must be signed and submitted by the homeowner, in person or by mail, to the Community Standards Department. Submissions not signed by the homeowner will not be accepted from a contractor.

3.3.1.8 Changes to Approved Applications

Any changes to an approved modification must be submitted to the Community Standards Modification Department for approval prior to implementation. Unapproved changes may result in the costly rework of the project and fines.

3.4 Application Processing

3.4.1 Fees

When required per the Schedule of Fees and Community Rules, fees are payable at the time of application submission. Applications received without required fees will not be processed. Revised applications, if resubmitted within 45 days, do not require an additional application fee.

3.4.2 Application Review

After an application is submitted, a Modifications Coordinator will be assigned to review the application and coordinate with the homeowner to complete the process.

3.4.3 Date of Application

Completed applications will be date stamped upon receipt by the Community Standards Department. Processing time standards will be based on this date.

3.4.4 Staff Review of Selected Modifications

The Modifications Committee may delegate authority to the Community Standards Modification Department to review and approve specific routine modifications for the convenience of homeowners. A written list of these delegated modifications will be provided to the Community Standards Modification Department along with applicable review criteria. If the approval decision is not clear cut, staff personnel will forward the application to the Modifications Committee for decision.

3.4.5 Modification Committee Meetings

When required, the Community Standards Modification Department will submit the modification applications to the Modifications Committee for review and disposition. The Modifications Committee will meet as required to provide a timely disposition and feedback as required by **Section 3.4.6 Processing Times Goal**. The Committee Chairperson will be responsible to set the dates and times. Applications received after the deadline, as set by the Community Standards Modification Department, will be held for review at a subsequent Modifications Committee meeting. Homeowner or contractor presentations at Modifications Committee meetings must be approved by the Modifications Committee **Chairperson**.

3.4.6 Processing Time Goal

The goal for reviewing applications and sending a response to the homeowner is 45 days or less from the date of receipt of a complete application package. The 45-day Community Standards Modification Department processing time goal will restart when a previously processed application is resubmitted.

4. Modifications Committee Review

4.1 Modifications Committee Review

The Reviewing Body, normally the Modifications Committee, shall review each application and determine conformance to the Design Guidelines and any other relevant Community Standards.

4.1.2 Modifications Committee Decision Process

After reviewing the application package, the Modifications Committee will vote on the project. Approval requires a simple majority of the members present. Members will recuse themselves in instances where there may be a conflict of interest regarding a particular application. Decisions will either be:

- “Approved” – The modification application is approved in its entirety. The Community Standards Modification Department will notify the homeowner with a Notice to Proceed. For projects requiring a county building permit, an official “Notice to Proceed” will be provided only after a copy of the governmental building permit is submitted by the resident to the Community Standards Department. Per CC&Rs, a resident has 120 days from the date of issue of the NOTICE TO PROCEED to complete a modification.
- “Approved as Noted” – The modification application is partially approved subject to conditions noted in the approval notification document. The purpose of this type of decision is to complete the processing of a homeowner request in a timely fashion when there is a minor element of the application that is either contrary to the Design Guidelines, not clearly defined, or subject to multiple interpretations. Homeowners may proceed with the modification only on the condition that the noted condition(s) are followed by the homeowner. If the homeowner is unwilling to comply with the noted conditions, the approval is automatically rescinded.
- “Denied” – The modification application is denied and no work shall be performed. The Modifications Committee will provide a written response identifying the portion(s) of the application which need further clarification or those that are deemed not in conformance with the Design Guidelines or other governing documents.
- “Under Review” – Applications which require revision or additional information will be returned to the homeowner with the Modifications Committee’s review comments. In some instances, the Modifications **Chairperson** may direct a visit by committee members or Community Standards staff to obtain additional site information or clarify details prior to a committee vote on the proposed modification.

4.2 Notification

Homeowners will be notified of the Modifications Committee's decision in writing or by electronic means.

- The notification will be mailed by standard U.S. Mail to homeowners who request in writing notification at an address outside of Sun City Hilton Head.
- For homeowners residing within Sun City Hilton Head, the notification will be by electronic means or delivered to the lower (personal) box located below the homeowner's U.S. mailbox.
- If no lower mailbox is available, then notification will be sent by U.S. Postal Service or by electronic means. This delivery constitutes "personal delivery" as discussed in the CC&Rs in Notice to Applicant.

4.3 Modifications Committee Reconsideration

Homeowners may request reconsideration by resubmitting their applications with changes or additional information as noted below:

- a) Resubmitted applications shall include changes to correct all previous committee objections. Revisions shall be clearly identified on the application materials with the revision date indicated.
- b) If applications are resubmitted without changes, they shall include additional information or clarification that was not included in the previous application that will substantiate that the proposed modification meets all guidelines.
- c) The Modifications Committee will decide on revised applications based on the revised documents submitted.

4.4 Appeals to the Board of Directors

Homeowners may appeal decisions of the Modifications Committee, in writing, to the Board in accordance with procedures established by the Board. Such appeals shall be submitted in writing to the Community Standards Modification Department for the Board's consideration.

5. Non-Liability for the Approval of Plans

5.1 Non-Liability Disclaimer

Article 11.7 of the CC&Rs states, "Review and approval of any application pursuant to this Article is made on the basis of aesthetic considerations only and neither the Declarant, the Association, the Board, nor the Modifications Committee shall bear any responsibility for ensuring the structural integrity or soundness of approved construction or modifications, or for ensuring compliance with building codes and other governmental requirements. Neither the Declarant, the Association, the Board, nor the Modifications Committee, nor any member, director, officer, or authorized agent of any of the foregoing shall be held liable for any injury, damages, or loss arising out of the manner or quality of approved construction on or modifications to any Lot. In all matters, the foregoing shall be defended and indemnified by the Association as provided in this Declaration or the Bylaws."

5.1.1 No Guarantee of Suitability or Safety

Homeowners are cautioned that all modifications to property are at the homeowner's risk.

5.1.2 Effect of Modifications on House Warranty

Homeowners are responsible for verifying the effect of any proposed modifications on any existing warranty.

6. Residential Design Guidelines

6.1 Introduction

This section contains specific guidance and limitations for external changes to Sun City Hilton Head residences and lots. All modifications to residences and lots require advance approval as set forth in **Section 1.5 Required Approvals**. Proposed modifications will be reviewed for approval to ensure the requested changes are in harmony with the individual and neighboring properties. This article contains both general guidelines, such as size limitations and setback requirements, and specific guidelines. It also contains restrictions on certain house modifications, limits on quantities or size of certain exterior items and prohibits some types of modifications. Homeowners should familiarize themselves with this article before submitting a modification request.

6.1.1 Matters Not Mentioned in the Guidelines

Failure to mention a specific matter in the Design Guidelines does not constitute automatic approval of any modification involving that matter. Where a modification request deals with a matter not mentioned in Design Guidelines, the Modifications Committee will determine whether the matter is subject to review and approval in accordance with the general guidelines set forth in **Section 1 Introduction & Procedures**. If no guideline exists but should exist, the Modifications Committee will make recommendations to the Board of Directors as appropriate and approved revisions will be incorporated into the Design Guidelines during regular updates. See **Appendix F – Design Guideline Changes** for further details.

6.1.2 Architectural Accent Differences

Original Developer architectural accents such as brick or stone veneer or partial metal roofs installed in one model series may be used in modifications to different model series houses. These modifications shall be limited to the extent, style, color and materials as used by the Developer.

6.2. Architectural Character

The Declarant has developed each area of Sun City Hilton Head and model house type with a specific design style. The original house styles are to be maintained.

ADDITIONS SHALL BE DESIGNED TO APPEAR AS PART OF THE ORIGINAL CONSTRUCTION OF THE HOUSE INCLUDING COMPATIBILITY OF SECTION 6.2.1 ALLOWED MATERIALS

6.2.1 Allowed Materials

All materials used in maintenance, repair, additions, and alterations shall match those used in original Sun City Hilton Head construction as to color, composition and type. The Modifications Committee may allow substitute materials consistent with original construction.

6.3 Property Limits

All applications for additions to a house, including any prior modifications, will be reviewed for proximity to property and setback lines, appearance from neighboring properties (including golf courses and lagoons/lakes), access for drainage and utility easements, and impact on lot drainage.

6.3.1 Property Lines

No modification will encroach on neighboring property, whether another house lot, common areas, such as golf courses or exclusive common areas such as those found in villa neighborhoods.

6.3.2 Setback Lines

Setback lines are defined for each lot by the Declarant and identified in the recorded subdivision plat, easements or Supplemental CC&RS. To protect against overbuilding a property site and imposing on neighboring properties or easement rights, all additions to houses shall be built within the setback lines originally established for the specific lot or as changed by the Declarant with the requisite approvals. Such recorded setback lines apply regardless of more lenient setback requirements of any governmental entity. Most minimum setbacks are set forth in part in **Appendix A – Building Setbacks** and are within those setbacks continued in detail in the Del Webb Specific Plan Development Guidelines, which relate to Sun City Hilton Head. A specific lot may have more or less stringent setbacks than those in **Appendix A – Building Setbacks** and the homeowner is responsible for building within those setbacks.

6.3.3 Setback Line Variances

Vertical construction of any type, whether a house addition or a garden structure, that extends beyond the setback lines, requires a variance approval from the Declarant. The Modifications Committee is not authorized to approve setback line variances. The Modification Committee will review an application of this type to determine if all elements of the design meet the Design Guideline requirements. The proposed modifications will then be returned to the homeowner with suggestions for changing the proposed project to fit within the setback lines. If this is not feasible the, resident may request a variance from the Declarant. The application will then be resubmitted to the Modifications Committee with the information of approval or denial by the Declarant. If approved by the

Declarant, then the Modifications Committee will approve the application. If denied by the Declarant, the Modifications Committee will deny.

6.3.4 Plot Plans

Property lines and setback lines are marked on the individual property plot plan provided by the Declarant to each original purchaser of a Sun City Hilton Head property. The Modifications Committee is bound by the official plot plan. Any subsequent changes to property or setback lines on the original plot plan shall be documented by a Declarant-approved revision to the plot plan. Privately commissioned surveys do not take precedence over the original plot plan unless approved by the Declarant.

6.3.4.1 Restricted Use Areas

Plot plans may contain utility easements and accesses, conservation easements, wetland buffers, common areas and other restricted use designations. Modifications are normally prohibited in such areas.

6.4 Height

No single story or multi – story addition shall exceed the height of the original roof line other than those contained entirely within the original roofline. Multi-story additions are allowed on the rear roof only on a case by case basis.

6.5 Area Limits on Additions

Maximum area limits prevent oversized additions that detract from the scale and character of houses and neighborhoods.

6.5.1 Twenty-Five Percent Rule

The total of all house additions, including screen enclosures, room additions, cart garages and any other vertical construction shall not exceed 25 percent of the footprint of the house. The footprint, measured in square feet, is the size of the house constructed as part of the original sales agreement. The footprint does not include unheated areas such as garages, porches and roofed patios. The footprints are listed in the Developer sales literature for each house model. For loft homes, only the ground floor area shall be considered in the footprint. Developer-built bay windows and garden rooms that were part of the original sales contract and constructed before escrow closing will be added to the footprint. Footprint information for most house models is available from the Community Standards Department. Oversized additions approved prior to the implementation of the 25 percent rule may be maintained in their existing configuration. However, any changes to these approved structures (i.e. to convert a screen enclosure to a room addition) shall be subject to the 25 percent rule.

6.5.2 Applicability

The 25 percent limitation applies when a slab of any type and a roof of any type (including screen enclosure “tops”) extends beyond the footprint of the house as originally constructed.

6.5.3 Sample Twenty-five Percent Rule Calculation

Example: A Dogwood model house with no garden room or bay window options added during original construction has a footprint of 2044 square feet, 25 percent of this amount is 511 square feet. A single addition of up to 511 square feet, or multiple additions totaling no more than 511 square feet, may be added to this house.

6.5.4 Cumulative Additions

All additions over the lifetime of the house are subject to the maximum expansion limit. Previous additions will reduce the remaining available expansion area. Example: A Dogwood model house with a maximum expansion limit of 511 square feet and a previously added 12-foot by 20-foot garage addition (240 square feet) can add no more than an additional 271 square feet for all future expansions.

6.5.5 Exemptions from Twenty-five Percent Rule

- Roofed patios preexisting from original construction, if subsequently enclosed, add no additional vertical construction and are not counted against the overall 25 percent limitation. For example, a roofed porch may be converted to a screen enclosure by adding screen walls. This home can still add 25 percent of the footprint area in other additions.

- Roofed structures preexisting from the original construction which are then subsequently incorporated into a new addition are not counted as part of the area of the new addition. For example, if a screen enclosure is added to the rear of an existing roofed porch and that porch is also enclosed at the same time, the area of the original porch is not counted when calculating maximum addition limits.
- See **Section 6.5.6 Thirty Percent Rule for Swimming Pools**, below.

6.5.6 Thirty Percent Rule for Swimming Pools

The total area of a screen enclosure/fence surrounding a swimming pool may be up to 30 percent of the applicable footprint square footage, as defined previously in **Section 6.5.1 Twenty-five Percent Rule**, subject to the following conditions:

- Pool mechanical equipment shall be positioned and concealed inside the screen enclosure. Screen enclosure “bump-outs” to enclose pool equipment are not permitted.
- No portion of the screen enclosure shall extend beyond the sidewalls of the house.
- The 30 percent allowance only applies to in-ground swimming pool installations. The pool shall be installed simultaneously with the screen enclosure and be of sufficient size to fill a majority of the area of the enclosure.
- Any previous additions to the house will be counted against this expansion limit.

6.5.7 Maximum Extension Limit

Extensions to a home shall not be out of proportion with the overall design of the main dwelling. A house addition or screen enclosure shall not be allowed to extend from the rear wall of the house more than 24 feet. The extension shall be measured from that portion of the original rear wall which is furthest from the front of the home excluding an angle bay window.

7. Application Categories

Modification applications fall into several categories depending on the nature and complexity of the projects. Each category has specific submission requirements.

7.1 House Addition Applications

Homeowners proposing room additions, screen/pool enclosures, glass sunrooms, golf cart garages, patio additions, and any major changes to exterior walls, roofs, windows, or foundations shall use the Community Standards Modification Application form and submit any additional information specific to the proposed modification.

Specific information includes:

- A plot plan is required and shall show all previously constructed additions including dimensions, as well as the proposed new addition, drawn to scale. Lot lines, building setback lines and easements should be shown. Encroachments over lot lines will not be approved. Encroachments over building setback lines and easements will not be approved except with an approved variance (See **Section 6.3.2 Setback Line Variances**).
- Conformity of the proposed addition to the limits on the cumulative maximum addition size limits (See **Section 6.5.1 Twenty-Five Percent Rule**). Previously constructed additions count against the allowable total.
- In cases of new or unusual requests, the Modifications Committee may request additional information from the homeowner such as building section drawings, samples of actual building materials, copies of manufacturer specifications, and/or engineer specifications may be requested.
- Building plans shall be drawn to scale (minimum ¼ inch to 1 foot) and of sufficient detail and accuracy to allow the Modifications Committee to verify that the external appearance of the proposed completed project will meet standards. Plans shall include all dimensions needed to verify the area of the addition, the distance from setback lines and the roof pitch. All materials and exterior color to include finish of the proposed project shall be clearly identified. Incomplete, inaccurate or unreadable drawings will be returned for correction.
- Examples of acceptable drawings are available from the Community Standards Department.
- Photos of the existing home showing proposed modification location is required.

7.2 Landscape Change Applications

Homeowners desiring to make changes to initial landscaping, regardless of the original source or approval authority, shall submit an Application form with a plot plan or landscape plan attached. The dimensioned plan shall show the house and any other structures situated on the lot, with property lines and adjacent features such as streets, wetlands, lagoons and easements. The plan shall show the placement of proposed plantings and contain a plant list with plant names and sizes. Landscape changes limited to one portion of the property may be documented by a partial plan illustrating only the area in question. Photos are required of the areas affected.

NOTE: Landscape accessories and structures shall be submitted on separate applications from plant materials.

7.2.1 Landscape Changes Not Requiring Approval

- Replacement of previously approved sod, shrubs, trees or ground cover with similar material.
- Addition of shrubs, ground cover and other plants (i.e. annuals and perennials) within previously approved planting beds, if consistent with the previous approval.
- See **Appendix B – Landscape Accessory Guide** list of landscape items that do not need approvals.
- Replacement of previously approved mulch with natural-colored organic mulch (i.e. shredded bark or pine straw).

NOTE: Regardless of whether landscape changes require or do not require approval, the homeowner remains responsible for meeting minimum landscaping requirements. Planting beds shall be maintained with sufficient plants to avoid bare areas.

7.3 Changes to Siding/Trim Applications

Changes to siding and trim are allowed. Residents wishing to re-clad their houses may do so with the following conditions:

- Submit a Modification Application, including photographs of all four elevations of the residence.
- Siding application will be “stand-alone” (No other changes to the premises can be made on this application).
- New cladding/trim material shall match that used by the Developer in Sun City Hilton Head.
- Unless previously offered by the Developer of Sun City Hilton Head, the “mixing” of siding materials is prohibited.
- Submit on the application any exterior color palette changes.
- Plot plans are not required.

7.4 Swimming Pools/Hot Tub Applications

In addition to the Modification Application form, these projects require additional plans and documents in accordance with the Pool and Spa Information Requirements guide available at the Community Standards Modification Department. The screen enclosure or pool security fence application shall be submitted simultaneously to ensure a coordinated review of the two related projects. Specific considerations for pools include:

- Pool enclosures may qualify for additional maximum size limits (See **Section 6.5.1 Thirty Percent Rule**).
- Pool equipment (i.e. filters, heaters, pumps) placement and enclosure requirements are summarized in **Section 8.10.6 – Pool Mechanical Equipment**.
- Signed neighbor agreements concerning any needed construction access and defining liability resulting from construction activity.
- Photos and a plot plan are required.

7.5 All Exterior Painting Applications

Exterior painting requires submission and approval of a Modification Application form.

Applications shall include:

- Recent color photographs of all four sides of the house.
- Color selections for body, trim, garage door and accent colors, (e.g., shutters, doors and louvers and other exterior elements from original Developer color palettes.)

- See **Section 8.11 Exterior Colors** for additional information on color selection guidelines and approval criteria.
- A plot plan is not required.

Neighbors may not use the same color as the neighboring house on either side or directly across the street.

Note: Repainting of home exterior using the original color palette for body, trim, doors, windows and shutters is considered home maintenance and no application is required.

7.6 Minor Exterior Modification Applications

This category includes all other exterior modifications such as driveway coating, reroofing, edging, storm doors, attic fans, shutters and any other modification not defined in a separate category. These requests may be submitted by using a Modification Application form with sufficient additional information to allow an adequate review. The Community Standards Modification Department can provide advice on the type of documentation needed for specific projects. (such as photos, plot plans, colors, technical specs, catalog illustrations, etc.)

Specific considerations include:

- Plot plans, if required by Community Standards Department, shall be clearly marked with the location of the proposed modification material(s). When multiple items are marked on the plot plan, a numbered list identifying each item shall be included. (NO SCALE IS REQUIRED... Just mark 1, 2, 3 on the existing plot plan and then provide a list that clearly identifies each number such as (1) = 66" fountain, (2) = gas firepit, (3) = Pindo Palm.

8. Exterior Home Modifications

8.1 Front of House and Yard Area

The front view from the street, particularly the entryway area, is the most critically judged aspect of the exterior appearance of a house. The Modifications Committee will take special care to ensure that modifications to the front of the home which are visible from the street are aesthetically in harmony with the individual and neighboring properties. Specific guidelines include:

- No Enclosed Porches. No part of the front entry/porch/courtyard shall be enclosed by a screen or full walled (floor to ceiling) structure.
- Concrete Expansions. The concreted floor area of the original front porch may be expanded with concrete or other hardscape material along the front length only of the existing concrete porch floor to a maximum of the width of the front soffit .The gutter width cannot be counted. Patios are not permitted in front yards unless installed in a courtyard.

The following exceptions apply:

- Front Walkways (See **Section 8.5 Driveway/Walkways** and **Appendix H – Front Walkway Description** for Illustrations of expansions).
- Decorative railings are permitted for certain under-roof porch installations. Black or white metal or vinyl-coated railing is a permitted material for this purpose. Fencing material is not permitted.
- Entry doors shall be painted a solid color in accordance with the approved color scheme. Stained doors are permitted. Decorative glass inserts in front doors are permitted. Storm and screen doors shall be of man-made material (no wooden storm/screen doors), may have clear, frosted, beveled or etched glass and shall match the color of the existing door or the surrounding trim (normally white). Ornamentation on screen doors is not permitted. This restriction applies to all external screen doors.
- Landscape in and around the front entry/porch or courtyard area shall be maintained to present a neat appearance with no overgrowth onto roofs or walkways. Plantings may be suspended or placed on pedestals in approved decorative containers or placed in approved decorative containers in planting beds or hardscape areas. When decorative containers and plant items that were previously approved are to be changed to similar items that are in compliance with the Design Guidelines, re-application is not required.

8.2 House Additions

These guidelines apply to all aspects of the house modifications.

8.2.1 Lot Drainage/Roof Drainage:

When any additions, alterations, or renovations are performed to an existing home, the established roof drainage must drain to the ground solely within the deeded lot area. No roof shall drain directly onto a neighboring property. Roof gutter downspouts shall be directed to splash blocks or other energy dissipating device, plastic flexible drain tubes, or to undersurface drainage lines within landscaping. The Resident is responsible to accounting for rear yard slopes and other conditions and ensuring their drainage changes do not cause erosion issues on adjacent property. (See CC&Rs – Easements for Cross Drainage)

8.2.2 Silt Fence/Erosion Control

This silt fence/erosion control applies to construction work conducted in areas subject to run off. To protect adjoining properties and common areas, a standard silt fence shall be installed to completely enclose the construction area. The silt fence shall be installed with the bottom of the material embedded under a soil or sod cover so that silt and debris do not run under the fence. The silt fence shall be properly maintained during the entire construction process. Extra care shall be given to street storm drains and inlets, as they are a direct conduit to lagoons and local waterways. Mud, dirt and concrete dragged from the construction site onto paved streets, whether caused by the homeowner, builder, subcontractors or suppliers, shall be promptly removed and cleaned by the end of each workday.

8.2.3 Construction Debris Clean-Up and Removal

Modifications or additions to existing homes require special arrangements to manage and dispose of construction debris and trash. Residents undertaking such projects shall take necessary actions to minimize the impact of the construction work on the appearance of the neighborhood. Construction sites shall be kept neat and clean to prevent creation of an eyesore and minimize safety problems. Residents are responsible for ensuring compliance by their contractors.

8.2.4 Clean-up Requirements

Trash and construction debris shall be cleaned up on the construction site at the end of each day and removed from the site or placed in the appropriate trash container. Lightweight and granular material shall be covered and weighted down to prevent wind scattering or rain washout. Materials that may have blown into lagoons, wooded areas, neighboring properties or common areas shall be retrieved immediately and placed in the proper trash container. Soil, mud, sand or other debris that is dragged or washed from the construction site onto the paved streets shall be cleaned up immediately. New construction materials shall be neatly stacked and consolidated on the homeowner's property. Unused materials shall be removed from the site immediately upon completion of the project. At no time shall any material be permitted to remain in the roadways after designated vendor hours.

8.2.5 Debris Containers

Construction debris containers, such as dumpsters, dump boxes and trailers, shall be placed on the homeowner's property, not in the street. Containers shall be removed promptly when full. Containers may remain at the residence for a maximum period of one week. Extensions beyond one week require the approval of the Community Standards Department. All construction debris shall be removed and disposed of at the appropriate public or private disposal site. Dumping of any kind, at any location within Sun City Hilton Head, is prohibited.

8.3 Foundations

Foundations for house, garage additions and screen enclosures shall be a poured concrete slab with footers per Governmental building code requirements. Wooden floor supporting structures on footings or on grade are not authorized. Foundations added for alterations shall have a maximum vertical exposure of 8 inches. Homeowners shall raise the grade or install raised planting beds with retaining walls to conceal exposed foundations in excess of 8 inches. Grade changes shall not adversely affect drainage towards neighboring properties.

8.4 Room Additions and Other Modifications

The exterior appearance of house additions shall:

- Maintain the appearance of the original house with respect to materials, finish, color and style. The goal is for the addition to appear to be a seamless part of the original house design.
- Roof lines shall be integrated into the existing roof to avoid a shed-like appearance.
- New windows and doors shall match the existing house and align with the original windows on the corresponding elevation. New transom windows may be installed above the original window elevation. The windows for the new addition shall match the existing home's window style (grids if applicable) and shall be clear glass except for the option of opaque glass in bath areas. Consideration will be given on a case-by-case basis for window styles that do not match the existing home's windows for those room additions that are located in the rear of the home and are not contiguous with the home's existing side walls.
- Siding material and stucco finishes on additions shall appear the same as the house and contain all the same trim and detail.
- Gutter leaders/downspouts shall not be mounted on the front elevation of garages. Gutters shall be colored **white, bronze** or painted to blend with adjoining house trim or walls. Flexible downspout extensions may be installed at the bottom of gutters. Flexible chain downspouts may be installed. Downspouts shall not **deflect** the flow of water onto a neighboring property.

8.4.1 Screen and Sunroom Additions

Screen and sunroom additions are permitted in the rear of the house only. They shall not extend laterally past the sidewalls of the house. Screen material used in either type of addition shall be charcoal tint or as individually approved. Sunroom additions are typically designed to admit sunlight and primarily have glass forming the walls of the room. Exposed wood framing is not an acceptable material for screen or sunroom enclosures.

- Sunrooms may have glazed or solid roofs and completely or partially glazed walls. Bird cages may have polycarbonate roofing.
- If a knee wall is used, it shall be finished with stucco, vinyl, hardie board or vinyl siding and aluminum to match the existing house finish and color. Stucco-board is not an acceptable substitute for an applied stucco wall finish. Knee-walls shall be between 24 and 30 inches above the finished floor.
- Laminated insulated panels may be used for infill around air conditioning units in metal framed additions. If used as knee-wall infill in metal framed screen enclosures or sunrooms, the clad panels shall match the color of the metal framing members.
- Through-the-wall air conditioning units are permitted in the lower portion of sunroom walls adjacent to the original house rear wall. Ground mounted air conditioning units shall be screened from view with plantings.
- Roof ornaments are not permitted.
- Glazing material and tint shall be approved by the Modifications Committee.
- Homeowners with covered patios may later enclose the patio with screening or a combination of windows, doors and screening upon approval by the Modifications Committee.
- Solid walls, partial or full, on any side of a screened porch or sunroom is prohibited. Screened porch knee walls are allowed.

NOTE: Rear sunroom and screened porch egress door locations shall be on a case-by-case basis.

8.4.2 Garage/Golf Garage Additions

Additions to garages may be permitted subject to the following:

- The garage addition shall be attached to the existing garage wall and fit within the applicable side and front setback lines.
- The front wall of the addition shall be set back a minimum of 1 foot from the existing garage front wall.
- The roof design shall match and blend into the existing roof line.
- Garage door width shall not exceed 10 feet. The garage door shall be centered on the front wall of the addition and match the existing garage door in color, style and windows (if any).

- If the addition does not have a garage door, it shall have windows to match and balance the existing front elevation.
- Gas meters left exposed in the front of the garage shall be protected from vehicle damage with a concrete-filled, steel pipe safety bollard painted to match the house wall.
- Silt fences are required and shall be properly maintained during the entire construction process.
- Concrete or paver driveway area may be added to provide access to the garage addition and shall match the existing driveway color and finish. The width of the added driveway area shall be the minimum needed to access the addition and shall extend laterally no more than 24 inches past the edge of the garage door, or the sidewall of the addition, whichever is less. The new driveway shall join the existing driveway no less than ten feet from the curb and will not extend directly to the street.
- Houses with multiple garage doors shall be free from any decorations, decals, lettering, art work, trim, displays, decor, magnetic applications or features of any kind, except external decorative metal hardware similar to and of same style, size and color as offered for installation by the developer and limited in number to no more than 12 items, including handles. Faux windows may be approved on a case by case basis, and are limited to 8 panels in a straight line in top row.

8.4.3 Pergolas and Gazebos

Pergolas typically have a flat, open roof constructed of crisscrossing lattice or slatted planks with vertical post supports. Gazebos are free-standing polygonal peaked roofed structures with open or partial walls. Pergolas and gazebos shall be in the rear yard only, shall not project past the sidewalls of the house. Attached pergolas are vertical construction and are subject to the 25% rule for maximum size. The size of the free-standing pergola and gazebos will be evaluated on a case-by-case basis. Pergolas and gazebos may be constructed of wood or manmade materials specifically designed as pergola or gazebo structures. Pergolas shall be white or match the trim or body color of the house. Unpainted wood is not permitted. Motorized lattice is permitted so long as the components, including strings, are not visible and are enclosed in conduit. The conduit must be painted to match the body or trim color of the Pergola.

8.4.4 Arbors and Arches

Arbors and Arches are garden structures which support climbing plants and shall have approved vegetation planted as a part of the project. Arches are rounded in shape at the top. Arbors are predominately horizontal at the top and have a vertically squared shape throughout. The same guidelines apply to both types of structures. Arbors and arches are permitted only in the rear yard and shall not project past the sidewalls of the house. The maximum dimensions, installed, are 8 feet high, 6 feet wide and 2 feet deep. They shall be colored white, black or to match house trim. Unpainted wood is not permitted.

8.4.5 Trellises

Trellises shall be of a size, material, style, symmetry and color suitable to the front view of the property. Decorative grills, gates, wall ornaments and fencing are not suitable for installation as trellises. Fence materials shall not be used as a trellis nor shall a series of trellises, arbors, or arches be combined to create a fence or enclosure. The preferred location for front yard trellises is adjacent to garage return and sidewalls. Trellises made of wood lattice material shall have framed edges. Wire fencing, unpainted wood, and unframed lattice stock are not permitted. Trellises shall be mounted plumb, level, parallel to and within 6 inches of the house wall. Trellises mounted against front garage walls shall not overlap the edges of the wall. Suitable climbing plants shall be planted to cover each trellis. Vegetation growing on trellises shall be maintained to present a neat appearance with no overgrowth onto roofs or walkways. The maximum width and height of trellises for front, rear, side, and garage return walls is 6 feet wide and 8 feet high. A series of trellises, or trellis-type material, shall not be combined to form a de facto fence, enclosure or privacy screen.

8.5 Driveways/Walkways

8.5.1 Driveway size

Driveways may be expanded to the width of the developer built main garage foundation facing the street. In addition, a flare may be added to both sides of the driveway at the curb. The flare is to start no more than 48 inches from the back of the curb and extend no more than 12 inches from the outer edge of the driveway/border. The

flare is to be constructed of the same material/color as the driveway/border. (See **Appendix H – Driveway Flare** for illustrations.) Villa owners shall comply with the special provisions of **Appendix E – Special Guidelines for Villas and Cottages**. Homeowners should consider the effect of driveway expansion on installed lawn irrigation systems.

8.5.2 Walkways Size

Walkways shall be no more than 56 inches wide excluding flares/blend points in its entirety. The 56 inch dimension is measured across (perpendicular) to the width of the walkway. Flares and blends where the walkway changes direction shall not exceed 30 inches in each direction from the change point. Other changes to walkways are limited to approved colors, patterns, texture, coatings and materials. Where a walkway connects to a front entry/porch, consideration will be given to a limited expansion of material beyond 56". This is only intended to accommodate an aesthetically pleasing connection to the porch. Houses that have a return wall less than 5 feet and the resulting space from the walkway to the wall less than 18 inches may have these areas hardscaped (but not with pavers, brick or concrete)i.e. river pebbles, without being considered part of the 56 inches. The area in front of/ adjacent to the garage between the driveway/extension and the walkway may be hardscaped if less than 18 inches wide as stated above. (See **Appendix H – Front Walkway Description** for illustrations.)

8.5.3 Materials

Driveways, walkways and driveway extensions may be constructed of concrete or of interlocking concrete pavers.

- Concrete shall be natural gray or an approved stain or applied finish. Color, pattern or texture shall be compatible with the house and neighborhood. Bright colors and extreme contrasts are not permitted. The main body shall be a single color without stamped patterns. Driveways without expansion may have a patterned border no greater than 8 inches wide on each side of the driveway and matching 8 inch wide accent strips at the head of the driveway adjacent to the garage door and at each developer installed expansion joint. On driveways that have been expanded, borders shall be a minimum of 8 inches wide up to the actual amount of driveway expansion (no greater than 24 inches wide). Accent strips will remain 8 inches wide. Body and edging colors of concrete driveways shall be compatible with each other and the adjacent walkway. Multicolored borders, such as simulated flagstone, shall avoid vivid contrast and bright colors. A four foot wide applied finish apron may be added at the street edge.
- Combination Concrete and Paver Driveway and Walkways: Borders and accent strips may be constructed of concrete pavers instead of an applied concrete finish subject to the same guidelines above. A four foot wide paver apron may be added at the street edge. With the exception of this apron, partial paver driveways are not permitted. Pavers and applied concrete finish borders shall not be combined.
- Interlocking Concrete Pavers: Pavers shall be installed in accordance with Interlocking Concrete Paver Institute (ICPI) specifications for residential driveways which may be viewed at the Community Standards office. Paver driveways shall have concealed edge restraints with sod extending flush to the edge of the pavers. Paver driveways shall be constructed using 60mm-80mm thick pavers rated for residential driveways over a compacted aggregate and bedding sand base per ICPI specifications. Existing concrete shall be removed and excavated to the appropriate depth. Thinner walkway pavers may be installed over existing concrete for walkways, patios, porches and golf cart garage driveways only. Pavers used for the body of a paver driveway shall be a single color ("blend" colors are permitted). Paver borders, if used, are subject to the same guidelines as concrete driveways, above, and shall be a compatible color with the paver driveway or walkway body.

8.6 Roofs

8.6.1 Replacement roofs

The color of shingles shall be compatible with original Developer colors and complement the house. A Modification Application is required if you are changing colors. If replacement shingles will be the same color, no Modification Application is required.

8.6.2 Roof Materials

Additions to roofs require a governmental building permit before a Notice to Proceed can be issued. The shingle color on the addition shall match the existing roof. No other roofing material, unless originally installed by the developer in Sun City Hilton Head, is permitted. Use of permitted alternate roof material is limited to the extent,

style material and colors as used by the Developer. Solar powered shingles may be considered on a case-by-case basis by the Modification Committee.

8.6.3 Slope of Roof

All modifications which include a roof shall have a slope of not less than 3 inches vertical to 12 inches horizontal and not more than 7 inches vertical to 12 inches horizontal or as used in the original house construction by the developer. This includes both hard roofs and screen enclosure “top”. Roof lines on house additions shall have a similar slope and blend smoothly into the existing roof.

8.6.4 Gutters

Gutters shall be as unobtrusive as possible. Gutter leaders/downspouts shall not be mounted on the front elevation of garages. Gutters shall be colored white, bronze or painted to blend with adjoining house trim or walls. Flexible downspout extensions may be installed on downspout bottoms. Flexible chain downspouts may be installed.

Changes to gutter leaders / downspouts on front elevations of villas may be allowed on a case by case basis. Super gutters or gutter extensions may not be used to alter the flow of water onto adjoining properties. Also see **Section 8.2.1 Lot Drainage/Roof Drainage**.

8.6.5 Roof Decorations Prohibited

The addition of cupolas, dormers, weather vanes, ornamental spikes, and other non-functional items are not permitted on house roofs or on additions such as cart garages, sunrooms and screen enclosures

8.6.6 Skylights and Solar Tubes

The preferred locations for skylights and solar tubes are on the rear roof. Exposed metal framework and flashing for skylights, solar tubes and exhaust fans shall be colored to blend with the roof shingles. The number and location of skylights and solar tubes will be reviewed on a case-by-case basis. Up to 3 low-profile solar tubes may be installed on the rear roof, and 2 low-profile solar tubes may be installed on the front roof. Bubble type solar tubes may be installed, but are limited to 1 on the front roof and 2 on the back roof. Location of all existing roof equipment (ventilators, fans, skylights, etc.) shall be noted on the application.

8.6.7 Attic Fan

Up to a maximum number of two attic fans (solar or electric powered) may be mounted on the rear of the building, below the roof line and not visible from the front of the building. The specifications of the particular product must be presented, at time of application. The maximum exposed dimensions of the attic fans must not exceed 12 inches in height, 24 inches in width and 24 inches in depth. No roof turbines or rotating panels are permitted. No auxiliary or supplemental panels can be mounted on the roof or the building. All exposed framework shall be colored to blend with the roof shingles. Location of all existing roof equipment shall be noted on the application.

8.6.8 Villas/Cottages Roof Changes

See **Appendix E – Special Guidelines for Villas and Cottages**

8.7 Exterior Siding/Trim

Exterior Walls shall be finished in one or more of the following siding/trim materials:

- Cementitious siding with 8" maximum exposure
- Cementitious shingles
- Cementitious board and batten siding
- Cultured Stone (front of home only)
- Brick Masonry (front of home only)
- Vinyl Siding
- Stucco

8.8 Windows, Doors and Shutters

Windows should generally be the same type and style all around the house. Window grids shall be included on the front of the house, but are not required on the sides and rear of the house. All windows must be vinyl, single-hung, or double-hung. Windows are to be GBG or simulated divided lite windows where grids exist.

Entry doors shall be painted a solid color in accordance with the approved color scheme. Stained doors are permitted. Decorative glass inserts in front doors are permitted. Storm and screen doors shall be of manmade material (no wooden storm/screen doors), may have clear, frosted, beveled or etched glass, and shall match the color of the existing door or the surrounding trim (normally white). Ornamentation on screen doors is not permitted. This restriction applies to all external screen doors. Added shutters shall be identical in dimensions (for comparable windows), style and color to any already installed by the developer. Shutter colors are “accent colors” under Section 8.11 Exterior House Colors. Shutters, front doors and any other accents, such as louvers over garage doors, shall be the same color. Shutters shall be installed at the same height as the window opening.

8.9 Patios

Rear yard patios may be constructed of approved concrete, stone, or masonry material with natural or manmade finishes and colors including exposed aggregate, tile, stamped concrete and natural pebble/stone epoxy coatings. Colors and patterns shall be compatible with the house and the neighborhood is restricted to the two color guidelines. (See **Section 8.5 Driveways/Walkways**.) Patios shall not extend past the sidewalls of the home. Vertical exposures of more than 8 inches can be covered with the same finish as the patio surface. In the case of concrete patios, homeowners shall raise the grade or install raised planting beds to meet the maximum 8 inch exposure requirement. See **Appendix I – Adding a Patio to an Existing Screen Room** for guidelines to add a sidewalk to a patio with an existing sidewall egress/entry door. Also see **Section 8.2.1 Lot Drainage/Roof Drainage**. Patios are not allowed in front yards except when installing a front courtyard (See **Section 8.9.3 Courtyards**).

8.9.1 Rear Patio Seating Walls

Rear patio seating walls shall be a minimum of 18 inches from patio surface to a maximum of 22 inches. The maximum width of the seating wall shall be no more than 12 inches. The maximum height/width of a post will not exceed 24 inches wide and 36 inches high. Wrought iron or other aesthetically pleasing gates may be allowed on a case-by-case basis. The gate shall be the same height as the adjoining wall and shall be the length of the wall opening. The gate must have a hinge or hinges so that the gate may be opened. The gate must contain a wall latch to ensure it will remain shut.

8.9.2 Decks

Decks are not permitted. (For Riverbend homes refer to the Custom Home Design Guidelines for Riverbend Neighborhood, **Section 3.8 Decks, Balconies, & Exterior Stairways**.)

8.9.3 Courtyards

The addition of front courtyards is limited to either:

- The furthest exterior wall of living quarters (not the garage or golf cart garage), or for homes without projecting front walls in living quarters, a maximum of 240 square feet with the front courtyard wall set back at least 3 feet from the front wall of the garage.
- For stucco-sided houses, the courtyard enclosure shall be a matching stucco wall. For Hardie-plank and vinyl sided houses, the courtyard enclosure shall be a metal fence with or without brick corner posts. Fence and wall guidelines are set forth in **Section 8.17 Fences, Railings and Walls**.
- The interior area of a courtyard may be landscaped and/or covered with approved hardscape material. Approved decorative outdoor furniture is permitted. Yard furniture (such as gliders and umbrellas) visible from outside the courtyard enclosure is not permitted. The exterior of courtyard enclosures shall be screened with plantings.
- Low decorative walls may be constructed to define approved front courtyards and to surround or partially surround rear patios directly adjacent to the house. Walls shall not enclose sodded lawn. An exposed maximum height of 36 inches and a minimum height of 24 inches for walls and 42 inches for corner posts are permitted. Posts and any post cap details shall not exceed 12 inches in width. Gates shall be proportional to the wall and/or post height and constructed of approved metal material. Wall color and finish will match the walls of the house.

Walls shall have flat tops except for transition areas adjoining house walls which may curve upwards a maximum of 12 inches. Front courtyards shall have foundation plantings around the outside perimeter.

8.10 Swimming Pools/Spas

8.10.1 In-Ground Swimming Pools/Spas

All pool /spas and fence/enclosure plans shall be approved by the Modifications Committee prior to commencing excavation. Pool and spas installations shall be managed by a licensed and insured pool contractor. If installation crews and/or materials will pass across neighboring properties, written permission agreements shall be obtained from the property owners and included with the application. This section also applies to in-ground spas.

8.10.2 Above-Ground Pools

Above-ground pools are prohibited.

8.10.3 Above Ground Hot Tubs

Above-ground hot tubs are permitted only if enclosed in a screen enclosure or sunroom. Fencing of a hot tub is prohibited

8.10.4 Swimming Pool Security Fences/Enclosures

Pools and spas shall be fenced or contained in a screened enclosure for safety reasons. Fences shall be a minimum of 4 feet and a maximum of 6 feet in height. Permitted fencing materials are wrought iron, steel or aluminum painted black. The vertical members of the fence shall not be less than 2 ½ inches apart and not more than 4 ½ inches apart. Pool fences may also have a 2 foot high masonry or stucco base with masonry or stucco columns at spaced intervals. Pool fences shall either completely enclose the pool or be attached to the house. Wood and chain link fencing is not permitted. The pool fence shall not be extended beyond the immediate pool surround area to create perimeter fencing or encompass non hardscape areas of the rear yard. Gates shall be the same material and height as the fence. Mature landscape plantings shall be placed outside of the perimeter of the fence to screen it from view.

8.10.5 Location

Pools shall only be installed in rear yards. Pools and their associated enclosure, fences and surrounds shall not extend laterally past the sidewall of the house.

8.10.6 Pool Mechanical Equipment

The preferred location for pool mechanical equipment is inside the pool's screen enclosure or security fence. Pool equipment installed inside a screen enclosure or fence shall be shielded from outside view with opaque material. If all pool equipment is installed inside the screen enclosure, the maximum allowable enclosure size is increased in accordance with **Section 6.5.6 Thirty Percent Rule for Swimming Pools**. Otherwise, pool mechanical equipment shall be contained inside a three-sided enclosure attached to the home near the rear corner. The enclosure shall be no more than 4 feet high and shall be finished to match the adjoining wall of the house (i.e., stucco, vinyl siding or Hardie-board). The equipment enclosure shall be concealed with mature plantings.

8.10.7 Maintenance Equipment Storage

Pool maintenance equipment such as hoses, skimmers, vacuums and chemical containers shall be stored out of sight from neighboring properties.

8.10.8 Excavation Safety, Erosion and Drainage

The excavation site shall be well maintained for safety and storm water protection purposes. Excavated material shall be promptly removed from the property. Silt fence is required and shall be properly maintained during construction. Grading and drainage shall be installed to prevent erosion. No pool shall drain onto neighboring property. Pools and hot tubs and their associated equipment shall drain to the pool owner's rear yard. Connections to sanitary sewers and drain pipes directed off the property are not permitted.

8.11 Exterior House Colors

Aesthetically pleasing and harmonious exterior house colors are key in maintaining community appearance. Approved Color selections are limited to developer-approved Colors, and the Community Standards Modification Department.

8.11.1 General Painting Guidelines

All exterior painting requires submission and approval of a modification application when changing the existing color of the body, trim, front door, garage door, shutters or accents around windows/doors/ vents etc.

Note: Repainting of home exterior using the original color palette for body, trim, doors, windows and shutters is considered home maintenance and no application is required.

8.11.2 Color Selection

Residents may choose house colors from the list of color palettes maintained by the Community Standards Modification Department. Color palettes contain body colors and associated trim, accent, door, and garage door colors.

Residents choosing a particular palette must use the trim accent, and colors associated with that body color. White trim is acceptable in any color palette. Colors will not be substituted between different palettes and will be used in their intended locations only (door colors on doors, trim colors on trim, etc.).

8.11.3 Front Door Colors

Front doors shall be painted or stained a solid color in accordance with the approved color scheme. Residents may request a different approved front door color. Approval is subject to the Community Standards Modification Department.

8.11.4 Color Matching

Residents may use any brand of paint, but the colors shall match the approved color samples maintained by the Community Standards Modification Department. Homeowners may take approved paint samples/color numbers to any paint dealer to have matching colors mixed. Accurate paint matches are essential. Only flat or satin sheen paints are permitted. Homeowners are responsible for the appearance of the final paint color on the house and should use caution in ensuring the actual paint used is a match for the approved color. Because the manufacturer's sample may vary from the applied color, homeowners are strongly urged to paint a small sample area prior to commencing the complete paint job to identify any possible mismatches before the entire house is painted. Colors that are one or two shades lighter or darker than the approved color shall not be allowed. Homeowners shall be required to correct colors that do not match the approved modification request. All materials shall be applied in accordance with the manufacturer's recommendations with the appropriate preparation, primer, and application to ensure an acceptable color match. All residents are encouraged to make an appointment to discuss their painting plans with the Community Standards Modification Department prior to preparing a painting request.

Riverbend house colors conform to separate Design Guidelines (see **Section 3.13 Color in Custom Home Design Guidelines for Riverbend Neighborhood**). These Sun City Hilton Head paint guidelines do not apply to Riverbend houses and Riverbend color schemes are not applicable for Sun City Hilton Head houses.

8.11.5 Not Applicable to Riverbend

Riverbend house colors conform to separate Design Guidelines (see **Section 3.13 Color in Custom Home Design Guidelines for Riverbend Neighborhood**). These Sun City Hilton Head paint guidelines do not apply to Riverbend houses and Riverbend color schemes are not applicable for Sun City Hilton Head houses.

8.11.6 Painting Garage Doors

Garage doors may be painted any of the following colors:

- White.
- The body color of the house.
- The garage door color specified in the developer color palette for the house.
- Multiple garage doors shall be the same color.

8.11.7 House with Both Stucco, Vinyl and Hardie Board Siding

The color scheme for these houses requires a reasonably close color match between the two different materials. Stucco, vinyl and Hardie board colors may fade at different rates and result in substantially different colors over time. All requests to replace vinyl siding or paint stucco and Hardie board, shall consider the current color of each material. The Community Standards Modification Department will handle these requests as a special case and verify all colors on site to ensure that the resulting colors after siding replacement, or stucco/Hardie board painting, result in a reasonably close match and correspond to an original developer color scheme.

8.11.8 Vinyl Siding Replacement

Owners of houses with vinyl siding will submit a modification request accompanied by a color sample of the proposed new house siding. The Community Standards Modification Department will verify that the proposed siding color and style is appropriate for the house.

8.12 Shade Devices

Shade devices shall appear as an integral part of the building elevation and shall be made of materials and colors that blend with the house and the neighborhood. Awnings and other shade devices shall only be mounted over windows and patio doorways, at the side or rear of the house and shall not be mounted on the roof, over front entry/porches, or used to screen ancillary equipment. Exterior vertical roll-up shades are not permitted. Motorized units with exterior wiring or cords shall be enclosed in conduit.

8.12.1 Materials

Natural or man-made fabric covering on a metal framework may be attached to the house and shall be removable or retractable for storage in inclement weather. Metal awnings are not permitted.

8.12.2 Color

The device shall be a single color and shall be compatible with the color of the house walls, roof and shutters.

8.12.3 Patio Awnings

Patio awnings shall not extend beyond 12 feet from the house or beyond the existing patio. The awning shall have a retractable feature for storage in inclement weather. It shall be retractable to the wall to which it is secured, leaving no support structure on the patio. The awning shall be in scale with the window/door opening. Awnings shall be permitted only in rear yards and mounted over concrete or paver patios. Exterior wiring or cords on all awnings shall be enclosed in conduit. Mounting locations are on walls or soffits and shall not be mounted on roofs.

8.12.4 Replacement

Replacement of existing awnings or awning coverings requires an approved modification request. Replacement colors and materials shall comply with the current Design Guidelines.

8.12.5 Window Solar Screens

Solar screens (defined as a screen that has specific material to block the sun as a primary function) shall be mounted over windows only and shall appear as an integral part of the window. Color of the screen fabric shall be gray or brown with a density of no more than 80%. The color of the frame for Solar screens shall match the color of the window frame. Solar screens mounted on single or double hung windows shall have a 2" wide horizontal frame piece mounted at the mid-point of the vertical height. For installation over windows with grids, the screen frame shall have grids to match the window grids. Solar screens should be installed on the entire elevation of the home. Example: If a solar screen is installed on the right elevation of the home, then all windows on that elevation shall have solar screens installed. No motorized units are allowed.

8.12.6 Garage Door Privacy Screens

For houses with multiple garage doors, all garage doors shall match in style, color, and window configuration and screens.

Garage door privacy screens shall be constructed of an approved opaque screen material with a minimum of 75 percent light blocking factor (approved colors, white, charcoal tint, or it may match the existing body color of the house). Screen framework shall match the surrounding garage door trim, or may be white.

8.12.7 Other Shade Devices

Tents, tent-like structures, canopies, and shade sails are not permitted. Lawn umbrellas are permitted in rear yards only.

8.12.8 Pergolas and Gazebos Shade Devices

Installation of shade devices on the side of pergolas and gazebos to block out the sun, will be considered on a case by case basis with the following guidelines:

- To be installed on no more than two sides.
- Must be motorized units mounted inside headers and posts with side tracks to secure screening from moving when the wind blows. When lowered, all must be at the same level. When used in pairs, both must be at same length.
- The color of the motorized unit and track shall match the color of the pergola or gazebo.
- The color of the screen fabric shall be gray or white with a density of no more than 80%.
- The exterior wiring or cords shall be enclosed in conduit and painted to match the trim or body color of the home or pergola.

8.13 Ancillary Equipment

8.13.1 Permanent Backup Generators

Permanent backup electric generators may be installed at the rear or side of home as long as it allows ample room for the easy and safe passage of mowing equipment. **Generators should** not exceed a noise output exceeding 75 decibels. Generators may be operated only during a power outage. They may be tested per manufacturers' recommendations, if necessary, between the hours of 7 AM and 7 PM Monday thru Saturday.

8.13.2 Solar Heating and Power Generation Panels

All solar collection devices/systems should be designed to minimize the visual impact from the street. (See **Section 8.2 Front of House and Yard Area.**) This will be a critical measurement of the approval process. Solar heating and power generation panels (referred to as panels) must be roof mounted and parallel with the roof. The preferred location is on the rear or side elevation (either on the main roof or a gable side of the rear roof line). Solar panel installations shall not be allowed/visible on front roof areas, parallel with the street, or adjoining gable areas; and shall not be visible from the street of adjoining street side properties. Solar panel will not be permitted for installation on villa units since the Association is responsible for the repair and maintenance of the roofs. The total square footage of solar panel installation may not exceed the average power required by the residence. The approval process will be on a case-by-case basis with consideration given to aesthetics and sun reflection from the panels.

Solar energy generating roof systems designed to appear as shingle roofs from the ground shall be approved on a case-by-case basis if they meet the following criteria:

- All mechanical or electrical elements other than the roof mounted system shall be housed in the garage or otherwise hidden from view.
 - The color of the roof system shall be compatible with the house and the neighborhood in which it is located and must be uniform in color.
 - The roof must not be more reflective of sunlight in a manner or to a degree that will cause any annoyance to neighbors or those passing by from the ground level. The roof must be designed to appear as a typical shingle roof (TESLA roofing system).
- 1.) Solar panel and or solar collection device installations shall be judged on, but not limited to the following:
- a) modulus of reflectivity (must be less than 3.0 percent);
 - b) inclusion of an ARC (anti reflective coating);
 - c) all revealed components are a uniform color (brackets, support angles, the panels, etc.);
 - d) with the exception of the disconnect box, all controls are installed inside the home;

- e) the array is symmetrical (i.e. no missing panels due to flues, standpipes, vents blowers, etc. protruding through the roof);
- f) the color of the roof with respect to the array color;
- g) the use of “faux panels that contain the same surface materials as functional panels” in the valleys of a roof to create a symmetrical array layout;
- h) the property location with respect to the surrounding houses, the neighborhood and overall surrounding area.

2.) The actual solar panels shall be the only portion of the installation visible on the roof. Items such as, but not limited to, conduit, cable/conductors, and control boxes shall NOT be visible on the roof. An alternate to being mounted on the house roof would be on a lanai or pergola roof; in this case, they must also be mounted parallel with the roof. Installations on posts or other locations not on the house roof, lanai roof, or pergola roof will not be considered.

8.13.3 Equipment Screening

All ground-mounted equipment, such as air conditioners and permanent backup generators, does not need to be screened from street and neighboring property view with landscaping. Fences, panels and other non-plant screening structures are not permitted except to screen pool mechanical equipment enclosures.

8.13.4 Supplemental Equipment

Window and roof-mounted equipment (including ventilation, exhaust, air conditioning), is not permitted except as otherwise described in **Section 8.6 Roofs**. Supplemental heating and cooling equipment specifically designed to be minimally visible in through-the-wall installations may be permitted in approved projects. For ductless air conditioning units such as mini-splits, wiring and piping mounted on the sidewall of home shall be enclosed in conduit. The use of conventional window-unit air conditioners are not permitted.

8.13.5 Other Prohibited Exterior Items

Installation of exterior equipment or items such as water softeners, water filters, trash or compost containers/piles, woodpiles, gardening storage areas, and any hardscape enclosing areas (other than described in **Section 8.10.6 Pool Mechanical Equipment**) are reviewed on a case-by-case basis. Single plastic storage container colors shall be compatible with the house color, and shall be permitted and placed in the rear yard. The maximum size for any storage container shall be 58 inches wide by 33 inches deep by 34 inches high. Garbage and compost may not be stored in these containers.

8.13.6 Water Treatment Systems

All interior water treatment systems shall be connected to the sewage system. Tank type water heaters must be installed inside the home. Tankless/on demand water heater systems may be installed on the exterior of the house in the utility area (the area containing the A/C compressor Unit, cable and phone boxes, and gas electric meters). Tankless/on demand water heater systems requires a suitable cover enclosing all components of the external system for aesthetics.

8.13.7 Water Collection Systems (Rain Barrels)

Water collection systems shall be allowed subject to the specifications for the preferred model recommended by the Beaufort Soil and Water Conservation District:

- Maximum of 2 barrels.
- Rear yard location only.
- 38 inch height and 80 gallon capacity maximum.
- Supported by a block/paver foundation for safety.
- Mosquito control screening and overflow capability.
- Colored inconspicuous shades of green, black or brown.
- Screened with shrubbery.

8.13.8 Antennas

Antennas whose installation and use is protected under Federal law and regulations are allowed (generally, certain television antennas under one meter in diameter). In accordance with FCC Rules regarding installation, maintenance and use of direct broadcast satellite dishes, the Community Association's intent is to enable homeowners to receive reception of an acceptable quality signal. Antennas are limited to one and must be removed if no longer in use.

The homeowner shall review the dish locations discussed below with the installer and based on signal reception readings, select a location for the dish position on his property that has the least visual impact on adjacent properties and instruct his installer accordingly. No installation will be permitted on the front elevation of a home. In addition, aesthetic conditions, such as attaching and concealing wire cables, shall be considered and implemented as part of the installation.

Note: See **Appendix E – Special Guidelines for Villas and Cottages** for information on dish/tv antenna installation in villa homes.

8.13.9 Dish Locations

These listed locations are intended to address all possibilities for an unobtrusive installation. The maximum height of a pole with dish shall be 80 inches above finished grade. The preferred antenna locations in order of preference are:

- Ground/pole mounted, rear yard and screened with tall shrubs.
- Ground/pole mounted, side yard toward the rear and screened with tall shrubs.
- Rear roof of the house, at lowest point of roof.
- Rear roof of the house attached to the fascia.
- Side of the house, at lowest point of rear roof, attached to the roof or fascia.
- Dishes are limited to one and must be removed if no longer in use.

8.13.10 Other antennas (Including Amateur and Ham Radios)

Other antennas (including amateur and ham radios) shall be reviewed by the Modifications Committee on a case by case basis and may be approved if the Modifications Committee determines that they provide no significant degradation of the visual presentation of the house to the street view or to neighbors. No more than one antenna may be allowed on a house. The applying homeowner shall include a copy of their valid Amateur Radio Operators License with their application. Any approved installation shall comply with the following:

- Must be a vertical whip antenna that is mounted in the rear of the house.
- All cables shall be concealed, within the house, or buried.
- No antenna, ground or roof mounted, shall extend higher than two feet above the house roof peak.
- Must be painted to match roof color if roof mounted. Any component mounted on the house must be painted to match the house color. If ground mounted, shall be painted to match the surrounding vegetation.
- Homeowners shall follow the current Radio (and other) Antennas information checklist available at the Community Standards Department and provide all required information. There shall be no interference with neighbor's radio or television reception.
- Other antennas are limited to one and must be removed if no longer in use.

8.13.11 Exterior Sound Emitting Devices

Any exterior sound emitting devices, e.g., speakers, sound players, insect/animal repellents/chasers, and chimes, shall not create an audible nuisance to the neighbors.

8.13.12 Lightning Protection

Lightning protection systems to be reviewed on a case by case basis. All lightning protection systems should be designed to minimize the visual impact from the street. (See **Section 8.1 Front of House and Yard Area.**) Maximum rod height is 12" above the roof ridgeline (to include dormers/ garages/ porches/ additions) with no decorations attached. All cables shall not be visible from the front roof and shall be enclosed on conduits. Ground rods shall be located on the side or rear next to the foundation of home. The homeowner shall agree to maintain the lightning rods.

8.14 Hurricane Protective Systems

Hurricane protective systems may be added to all Sun City Hilton Head homes subject to Modifications Committee approval.

8.14.1 Removable Systems

Removable systems are stored inside the house and only mounted in the event of a hurricane threat. Permanent mounting fasteners shall be colored to match the surrounding window trim and/or be minimally visible from the street.

8.14.2 Fixed Systems

Fixed systems include metal hurricane shutters that mimic decorative shutters when in the stored position and horizontal or vertical metal accordion shutters that roll back into a surrounding framework. Metal hurricane shutters shall be painted to match the shutter color ("accent" color) of the approved house color scheme and shall match the front door. Metal accordion shutter frames shall be painted to match the adjoining surface where installed. Fixed systems shall not substantially deviate from the aesthetic look of the house.

8.14.3 Use of Hurricane Shutters

Hurricane shutters are not to be used as sun shades. They shall only be installed or closed in accordance with Community Association policy during a pending weather emergency and shall be returned to the "non-emergency" condition following such events as outlined in the Schedule of Fees and Community Rules.

8.15 Lighting

Sun City Hilton Head Lighting Guidelines were created to reduce and minimize light pollution and the effect of artificial light on the natural surroundings. Lighting additions shall minimize the light directed outside of the lot to avoid creating light nuisances or hazards for neighboring properties. Wall and post Lighting for front and rear elevation mounted lamps shall use no more than 1100 Lumens per fixture. Maximum lumens is 250 per bulb with no more than 1100 lumens per fixture. Flicker flame light bulbs may replace clear bulbs on garage and entry door coach lights. Colored, blinking, and/or rope light chain are not allowed (except as part of a specific holiday lighting display). Ex. 60-watt bulb = 800 lumens. All landscape fixtures shall use low-wattage lamps and bulbs.

8.15.1 Fixture Modifications

Wall-mounted or post-mounted fixtures added to the front of a house shall match any existing fixtures. Replacement fixtures shall be compatible with the size, style, and finish of the fixtures installed by the developer in Sun City Hilton Head.

8.15.2 Post-Mounted Fixtures

Post-mounted fixtures shall be no closer than 15 feet to the curb. Total height shall not exceed 80 inches. Maximum front yard quantity is one post-mounted fixture. Front yard post fixtures shall match existing wall-mounted fixtures. Multiple globe lighting fixtures are not permitted. A maximum of two rear yard post fixtures will direct the light downward and not create light nuisances for neighboring properties.

8.15.3 Security Cameras, Spotlights and Floodlights

(A "device" shall be defined as any one of the following: camera, spotlight, or floodlight.) The preferred placement of a device on the Front of the home shall be on the corner board, the trim board, or under the soffit. The preferred placement of security devices on the garage shall be on the corner board or on the trim board above the garage door. Security cameras shall only be directed onto the homeowner's property or the roadway. Cameras SHALL NOT record another neighbor's property regardless of placement location on the house. Solar-powered devices (devices that require a separate solar panel) may be installed only on the side of the house.

(DEVICES - security cameras, floodlights and spotlights)

(Front of home) - Three devices are allowed for the Front of the house.

(Sides of home) - Only one camera may be reviewed by the Modification Committee on a case-by-case basis. **No additional lighting other than developer-installed lighting may be installed on the sides of the house.**

(Rear of home) - Two devices are allowed at the back of the house. (Not counting the developer-installed lighting.) Spotlight & floodlights, mounted anywhere on the Front of the house, shall have motion sensors.

Maximum lumens is 1,100 per fixture. Fixture design and placement shall be subject to Modifications Committee approval. Ring-type doorbells may be installed in the entryways and will not count as a device as defined above.

8.15.4 Landscape and Path Lighting

Decorative single unit low voltage/solar light fixtures for low-level landscape and path lighting are permitted. Fixtures shall be installed and maintained in a vertical position in planting beds only. Maximum height is 24 inches above ground level. A maximum quantity of 12 low-voltage or solar lights (25 lumens per bulb) may be installed in front yards. A maximum quantity of 12 low voltage or solar lights may be installed in rear and side yards (combined). All other landscape lighting, including up lights, down lights and washes, shall be low-voltage and recessed to shield the source of the light from view. Shrubs shall be used to conceal landscape lighting fixtures. Junction boxes shall be placed within six inches of finished grade to minimize daytime visibility of the hardware. Brick paver light installations on front elevations are limited to walkway areas only. A maximum of 12 lights per front elevation.

8.15.5 Holiday Lighting and Decorations

Temporary outdoor holiday decorations are allowed during a reasonable time period prior to, during, and after a holiday season as outlined in the Schedule of Fees and Community Rules.

8.15.6 Lighted Street Numbers

Developer-installed lighted street numbers will be retained and maintained in good working order. Homeowners may request approval to relocate the lighted street number fixture from the garage front sidewall to a position centered over the garage door and not to exceed 6 inches above the garage door trim.

8.15.7 House Additions/Enclosures

A switched light fixture will be installed at exterior doors to house additions and screen enclosures per the applicable building code requirements. The light from these fixtures will be directed downward to avoid creating a light nuisance for neighboring properties.

8.16 Signage

Unless more restricted by applicable laws, and in conjunction with Exhibit C Initial Use Restrictions of the CC&Rs, the following shall apply:

8.16.1 Prohibited Signs

Signs of any kind, except those required by law, including posters, circulars, billboards, “For Sale”, “For Rent”, “Open House” or other commercial signage shall not be displayed on a lot, house (inside or outside), or vehicle. Name and street number signs, in any configuration, except as installed by the developer per **Section 8.15.6 Lighted Street Numbers**, are also prohibited.

8.16.2 Authorized Signs

8.16.2.1 No Soliciting Signs

Residents shall be permitted to post “No Soliciting” signs near or on the front door, or in the front yard near the entrance to a courtyard. Such “No Soliciting” signs shall not exceed 1 foot in height if placed in the ground. Any such sign shall not exceed a size of 36 square inches (i.e., 3 inches by 12 inches) whether placed in the ground, on the front door or in a window near the front door. The sign shall be located within the setback lines.

8.16.2.2 Invisible Fence Signs:

Residents shall be permitted to post an “Invisible Fence” sign near the front door, front landscape bed adjacent to the home, or in the front yard near the entrance to a courtyard. Such “Invisible Fence” sign shall not exceed 1 foot in height if placed in the ground. Any such sign shall not exceed a size of 36 square inches (i.e., 3 inches by 12 inches) whether placed in the ground, on the front door or in a window near the front door. The sign shall be located within the setback lines.

8.16.2.3 Security Company Signs

Residents shall be permitted to post a sign from a security/alarm company providing Standards to such Resident or the home. One single-sided security/alarm sign may be placed in the front yard where it is visible to persons approaching the house, and a sign may also be placed in the windows of the home. The sign shall not exceed 2 feet in overall height from finished grade and/or 72 square inches in size (i.e., 8 inches by 9 inches) if placed in the

ground; or 16 square inches in size (i.e., 4 inches by 4 inches) if placed in a window. The sign shall be located within the setback lines.

8.16.2.4 Declarant Signs

Notwithstanding the above, Declarant shall be allowed to install any sign(s) necessary for purposes connected with the development of Sun City Hilton Head and/or as may be described in the CC&Rs.

8.16.2.5 Building Permits and Notices to Proceed

Building permits and Community Association Notices to Proceed are permitted and shall be displayed as directed in the respective document. They shall be removed promptly following completion of the work to which they refer.

8.16.2.6 Welcome Sign

A decorative “Welcome” plaque may be placed only on the front of the home and on the front garage wall alongside the garage door. Maximum size is 144 square inches. Color and style shall be in harmony with the front view of the house.

8.17 Fences, Railings and Walls

Perimeter fences and walls, whole or partial, are not permitted. By design, Sun City Hilton Head yards are open. Certain decorative fences, railings and walls are permissible in accordance with this section and require Modifications Committee approval.

8.17.1 Courtyard Decorative Fences

Decorative fences are allowed at the front entry to create a courtyard for houses which qualify for a courtyard addition in accordance with **Section 8.9.3 Courtyards**. Plantings shall be placed around the entire exterior fence to screen it from view.

8.17.2 Size

The maximum decorative fencing height for Classic/Premier/Jasmine/Palmetto homes shall be 36 inches, and the maximum height for Estate/Magnolia homes shall be 42 inches. The vertical members of the fence shall not be less than 2½ inches apart and not more than 4 ½ inches apart. Gates shall be proportional to fence heights.

8.17.3 Materials

Materials used for decorative fences and gates shall be wrought iron, steel or aluminum painted black with or without brick or stucco corner posts to blend with the house. Vinyl and wood fencing is not permitted. Fencing shall be set in concrete or shall be bolted and grouted to a concrete surface. Fences shall be installed and maintained plumb and level. Fences shall be repainted whenever necessary to maintain the original appearance.

8.17.4 Front Porch Railings

Decorative railings are permitted for certain under-roof porch installations. Black, white or bronze metal or vinyl coated railing is a permitted material for this purpose. Fencing material is not permitted.

8.17.5 Other Fences and Fence-Like Structures Not Permitted

No other residential fences are permitted in Sun City Hilton Head. Corner yard accent fencing, split rail fences sections (“Carolina fence”), temporary pens and enclosures are prohibited. Fence materials shall not be used as a trellis nor shall a series of trellises, arbors, or arches be combined to create a fence or enclosure. Pet enclosures are prohibited in Sun City Hilton Head. **Invisible pet fencing is allowed.**

8.17.6 Decorative Walls

Property line perimeter walls are not permitted. Low decorative walls may be constructed to define approved front courtyards and to surround or partially surround rear patios directly adjacent to the house. Walls shall not enclose sodded lawn. An exposed maximum height of 36 inches and a minimum height of 24 inches for walls and 42 inches for corner posts are permitted. **The maximum width of the wall shall be no more than 24 inches in width.**

Gates shall be proportional to the wall and/or post height and constructed of approved metal material. Wall color and finish will match the walls of the house. Walls shall have flat tops except for transition areas adjoining house walls which may curve upwards a maximum of 12 inches. Front courtyards shall have foundation plantings around the outside perimeter. Rear patio seating walls shall be a minimum of 18 inches from patio surface to maximum of 22 inches. All height measurements in this section are to be made to the outside of the wall.

8.18 Decorations

- Decorations attached to walls, on pedestals or suspended from the covered structure shall be in harmony with the property frontal view.
- Artificial plants and flowers may only be displayed in the area under the front porch roof and shall be maintained in good condition. Faded or worn artificial plants shall be removed.
- Wall-Mounted Decorations. The maximum size for wall-mounted decorations is 36 inches in any dimension. Wall mounted decorations shall be mounted only on the garage return wall adjacent to the front entry walkway or under the porch roof. Decorations shall be centered on the blank wall space. The maximum number of wall decorations on the garage return wall is two and shall be visually compatible with each other.
- No other type of decoration, including wall-mounted sculptures and planters, shall be installed on the front garage walls with the exception of approved flag mounting fixtures.

8.18.1 Decorative Ponds

The maximum depth of decorative ponds is 2 feet. Ponds shall be installed in rear yards or enclosed front courtyards only.

8.18.2 Decorative Furniture

Decorative furniture shall be in harmony with the frontal view in style and color. Maximum height is 3 feet. Maximum width is 5 feet. May be placed in planting beds, courtyards or on the front porch. No closer than 15 feet to curb.

9. Minor Items

9.1 Mailboxes

- The color, size, appearance and location of mailboxes and their supporting posts installed by the developer shall be preserved. They shall not be altered (Except the following exceptions) Adhesive house numbers may be affixed to the mailbox's side or front door. The adhesive Numbers shall be black on a White Background. Numbers are to be 2.5 High. Approved Bird screens may be added to the lower mailbox.
- Replacement mailboxes and posts shall match the size, color and style of that previously installed by the developer. All mailbox and post replacements are subject to approval of the Modifications Committee. Costs for replacement/maintenance of multiple use mailbox posts shall be shared by the owners of the mailboxes.
- Homeowner names and street names or any other "decoration" like scroll work, etc, are not permitted anywhere on mailboxes or posts. No reflectors of any kind (including reflective tape) are permitted on mailboxes or mailbox posts anywhere in Sun City.
- Mailbox plantings are discussed in **Section 9.1.2 Mailbox Planting Beds**.

Customized artwork or other adornments to the grid are not approved.

9.1.2 Mailbox Planting Beds

Small planting beds around mailboxes are permitted subject to the following conditions:

- Planting bed size is limited to a maximum of 18 inches in any direction from the mailbox pole.
- Plants shall be kept pruned no taller than a horizontal line extending from the bottom of the U.S. mailbox.
- Planting bed shall be kept edged to prevent mulch from washing into the street. Edging material, if used, shall be unobtrusive and neatly installed.
- Planting bed shall be kept clean and mulched during the dormant season. Dead annuals shall be removed and dormant perennials neatly pruned. Unplanted mailbox beds are not permitted. If unused during the growing

season, the bed shall be removed and replaced with sod.

- Non-plant materials, i.e., yard ornaments, decorations and plastic plants, are prohibited in mailbox beds.
- Plant supports shall be unobtrusive in color, size and style and removed when not covered with plants.

9.2 Decks

Decks are not permitted. For Riverbend homes refer to the Custom Home Design Guidelines for Riverbend Neighborhood **Section 3.8 Decks, Balconies, & Exterior Stairways**.

9.3 Trash Containers

Trash shall be stored in covered containers, which shall be kept in the garage, except when they are being made available for collection.

9.4 Yard Furniture

Yard furniture (i.e., lawn chairs, lounges, gliders, tables, and umbrellas) is permitted in rear yards only. Furniture is permitted in front yards only if it meets the standards for formal decorative furniture as defined in **Section 8.18.2 Decorative Furniture**. Patio umbrellas are not permitted in front yards, including courtyards. Yard furniture in rear yards shall be placed no closer than 20 feet to the nearest property line unless placed on hardscape material adjacent to the house

9.5 Plant Supports

There are two permitted types of plant supports for the display of hanging flower pots containing live plants: metal “shepherd hooks” and wooden decorative posts. A maximum of three supports of any type, one in the front yard and two in the rear yard, are permitted. Supports shall be no more than six feet high above ground. All supports shall be installed in planting beds no closer than 15 feet from the street and maintained plumb and level. Hanging pots without live plants shall be removed. Pots shall not be placed on top of supports or hung from trees or bushes. Metal shepherd hooks may have up to three arms to support hanging plants and shall be black, white or painted to match the house trim or body color.

Wooden or manmade decorative posts shall contain decorative millwork features such as a mixture of round and square sections and carved or turned details. Plain wooden posts are not permitted. Posts shall be no more than 4 inches in width and may contain up to three arms to support hanging flower pots. Posts shall be white or painted or stained to match house trim or body color. Plant supports that also include a bird house or feeder shall be counted as a plant support for quantity limitation purposes.

9.6 Prohibited Exterior Features

Pursuant to the CC&Rs and/or these Design Guidelines, the following features are prohibited from use in Sun City Hilton Head:

- Permanent ground-mounted flagpoles.
- Clothes lines or clothes poles.
- Detached garages.
- “For Sale” or “For Rent” signs.
- Outdoor electronic pest control devices (bug zappers).
- Window air conditioning units.
- Above-ground swimming pools.
- Storage buildings/storage containers, dog houses, and sheds. Exterior or attached storage buildings or sheds are defined as structures which have an external appearance of a storage facility (lack of roof lines, windows or entry doors that do not match the original house and are additions to the home that are not in harmony with the original home style).
- Dog runs, fencing, and enclosures for pets.
- Vegetable gardens on residential lots.
- Firewood storage piles.

- Wood decks (See Custom Home Design Guidelines for Riverbend Neighborhood).
- Installed insecticide or insect repellent systems that spray into the air around the house (such as “mosquito misting systems”).
- Storage sheds.
- Trash or compost containers /piles.

NOTWITHSTANDING THE ABOVE DECLARANT SHALL BE ALLOWED TO INSTALL ANY STRUCTURE(S) NECESSARY FOR PURPOSES CONNECTED WITH THE DEVELOPMENT OF SUN CITY HILTON HEAD AND/OR AS MAY BE AUTHORIZED BY THE CC&Rs.

9.7 Outdoor Wood Burning Fireplaces/Fire Pits

Per the CC&Rs, open fires are not permitted in Sun City Hilton Head unless in contained outdoor fireplaces or barbecue units while attended and in use for cooking purposes only. Accordingly, wood or wood-product burning outdoor fireplaces and fire pits, unless specifically and only used for cooking, are not permitted. Additionally, per **Section 9.6 Prohibited Exterior Features**, exterior wood storage is prohibited. Natural gas or propane burning units are permitted.

9.8 Flags

No stand-alone flagpoles are allowed on residential lots in Sun City Hilton Head. Not more than 2 flags may be displayed on the front of the house. The maximum number of mounting fixtures is 2. No flag may extend so that the end protrudes more than 4 feet from the exterior wall of the house to which it is attached. Flag mounting fixtures shall be installed only on garage front walls, front porch walls or front porch columns. Flag mounting fixtures shall not be placed above the garage door or on any other wall of the house. Low ground flags are landscape accessories in accordance with **Appendix B – Landscape Accessory Guide**.

9.9 Outdoor Kitchens

Outdoor kitchens and built-in barbeques shall be placed in the rear yard only and shall not extend laterally past the sidewall of the house. The exterior surrounding shall blend with the home color and be aesthetically pleasing. **Maximum height of fireplace is 8’.**

9.10 Window Boxes

Window boxes shall be of materials and colors compatible with the existing house and shall be mounted securely. Artificial plants are not permitted.

9.11 Protective Curb Markers

Where vehicles are repeatedly driving over curbs and damaging yards and sprinkler heads homeowners may apply to the Community Standards Department which will verify the need and upon approval authorize the installation of 12 inch tall white vinyl golf course markers with white reflective tape and metal mounting spike in order to protect resident’s property. Approved markers are available at the Community Standards Department at cost.

- Mailbox use: 2 markers on each side of the box, at 1 foot and 4 foot distance from the box.
- Outside curve yard use: Maximum of 4 markers spaced equally in the arc of the curve. Markers shall be used only for the minimum period necessary to cure the problem and are not intended to be permanent fixtures.

10. LANDSCAPING

10.1 Landscaping for Common Areas

10.1.2 Community Association Responsibility

The Community Association shall be responsible for maintaining the area of Common Responsibility as provided in the CC&Rs. The Community Association shall also perform such additional maintenance as may be required under any Supplemental CC&Rs for villa or cottage neighborhoods or for managed neighborhoods on the north side of Hwy. 278.

10.1.3 Homeowner Restrictions

Homeowners shall not plant, cut, cultivate, build on, install any devices or otherwise modify common areas or plantings growing on common areas without permission of the Community Association. This includes, but is not

limited to, golf courses, nature preserves, wetlands, lagoons and access and utility easements. Concerns about common area landscaping should be addressed to the appropriate Community Association department.

10.2 Community Standards for Residential Landscaping

The guidelines below apply to the continuing maintenance of residential landscaping and may also be used as the basis for a complete landscape redesign. Prescribed types, sizes and quantities of plantings are applicable to complete redesign projects. For continued maintenance of existing landscaping and/or partial lot landscape modification requests, the size of mature existing plantings will be taken into consideration when determining the required minimum types, sizes and quantities of plantings. Special Guidelines for Villa and Cottage and the Jasper County neighborhoods are set forth in **Appendix E – Special Guidelines for Villas and Cottages & Appendix G – Guidelines for Homes in the Jasper County Section of Sun City Hilton Head**.

10.2.1 Landscape Maintenance

Owners shall maintain all shrubbery, sod, trees and other landscaping installed on their lot in a neat, clean, orderly and healthy condition. Overgrowth of shrubs and vines onto soffits or roofs is not permitted. Lawns shall be comprised of grass sod only and shall be cut and edged next to all concrete or asphalt surfaces and shall be regularly mowed and maintained. Decorative rock yards, paved yards, or yards in which the principal ground cover is other than grass sod are specifically prohibited. All non-lawn areas shall be kept free from excessive weeds or unsightly undergrowth or brush. The homeowner's maintenance and care obligations shall apply to all portions of the lot including any easements located on or adjacent to, including front, side and rear road and utility easements. Trees and shrubs will be kept trimmed to avoid blocking lines of view for vehicles at intersections and interfering with the passage of pedestrians or vehicles on the street. (For homes located in Jasper County, see **Appendix G – Guidelines for Homes in the Jasper County Section of Sun City Hilton Head**).

10.2.2 Plantings

Landscape in and around the front entry/porch or courtyard area shall be maintained to present a neat appearance with no overgrowth onto roofs or walkways. Plantings may be suspended or placed on pedestals in approved decorative containers or placed in approved decorative containers in planting beds or hardscape areas. When decorative containers and plant items that were previously approved are to be changed to similar items that are in compliance with the Design Guidelines, re-application is not required

10.2.3 Minimum Type, Quantity and Size of Plantings

Regardless of whether landscape changes require or do not require approval, the homeowner remains responsible for meeting minimum landscaping requirements. Planting beds shall be maintained with sufficient plants to avoid bare areas. Except for the small area (20" wide or less) between the walkway and garage return wall shall have non-plant material such as stone, mulch or hardscape with no live plants. Required foundation planting beds shall not be converted to lawn grass.

10.2.4 Recommended Plant Materials

Appendix D contains a list of recommended plant material compatible with the climate zone. Appendix D also contains information on deer-resistant plantings. Homeowners are cautioned that the selection and installation of plants which are unsuitable for the Sun City Hilton Head climate (i.e. tropical plants) or are attractive to deer, rabbits and other pests does not entitle the homeowner to erect protective covers, barriers, fences or otherwise unapproved modifications beyond that discussed previously in "Plant Covers and Barriers." The use of artificial vegetation (including plants, trees, flowers, and grass) of any kind is not permitted except under the roofed area of porches.

10.2.5 Swales

Plants, flowers, shrubs, and trees shall not be planted in the swale such as to obstruct storm drainage along the side yards of the lot. The approved planting material for swales is grass sod. (See **Section 10.3.3 Lawn Grass**)

10.2.6 Irrigation Systems

All landscape plantings shall be maintained by a fully automatic underground watering system which includes a rain sensor if installed during initial construction by the Developer, to shut off the system during periods of wet weather. When using sprinklers, care should be taken to avoid overspray onto structures, sidewalks, streets and adjacent properties.

10.2.7 Mulch and Weed Control

Planting beds shall be mulched to prevent weed growth. Authorized inert mulch materials are listed in **Appendix C – Approved Inert Materials**. Natural pine straw and bark mulch in natural brown colors may be installed and replaced in previously approved planting beds without approval. All other types and colors of mulch materials require approval. Brightly colored and reflective materials are not permitted. River Rock and Rubber mulches should have a layer of permeable weed control fabric material concealed beneath the mulch. (For homes located in Jasper County, see **Appendix G – Guidelines for Homes in the Jasper County Section of Sun City Hilton Head** for additional requirements for installing pine bark, hardwoods, rubber and river rock mulches with functional edging). All weed control fabrics shall be concealed with approved mulch material. The use of solid plastic or polyethylene sheeting over ground cover areas is not permitted. Only a single color and material mulch shall be used per side of a house. The small area (20" wide or less) between the walkway and garage return wall shall have plantings or non-plant material such as stone, mulch or hardscape with no live plants. The color should complement the walkway and/or planting bed material. Stone or river rock when used in this article or in reference to landscaping shall mean smooth, rounded stones of no more than 2 inches across.

10.2.8 Foundation Beds and Plantings

Foundation planting beds are required around the front of the home, beds shall be of sufficient plantings and shall not have voided space within the bed. The small area (20" or less) between the walkway and garage return wall shall have plantings or non-plant material such as stone, mulch or hardscape with no live plants. Solid knee walls and opaque panels in additions, screen enclosures and sunrooms do not require foundation planting. Empty beds are not permitted. Altering foundation beds to lawn grass or other non-plant material is not permitted without approval. For homes located in Jasper County, see **Appendix G – Guidelines for Homes in the Jasper County Section of Sun City Hilton Head**.

10.2.9 Gutter Splash Block Materials

River rock can also be used to create a splash block in landscape bed. It shall be no more than 12 inches wide and extend perpendicular to the side wall of the house to the end of the bed/grass edge. Also see **Section 8.2.1 Lot Drainage/Roof Drainage**.

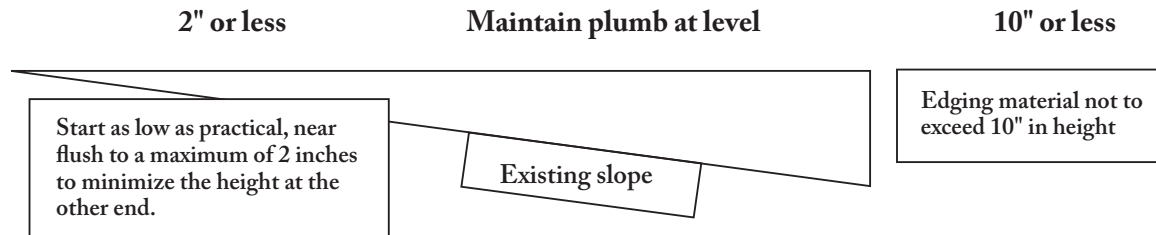
10.2.10 Landscape Edging

Landscape edging is material placed around planting beds and sod to separate the two areas and/or to retain mulch within a planting bed. All edging material requires approval. Edging shall not be closer than 3 feet to the property line or encroach in a drainage area or swale, except as specifically authorized elsewhere. (See **Section 10.2.5 Swales**). Edging can be used to separate sod from sidewalks, driveways, patios and porches. There are two categories of edging:

(A) **Decorative Edging.** Cast concrete, masonry materials and approved manmade materials that are above grade and provide a distinct visual separation between the two areas. Color, size, and style shall be compatible with the house and the neighborhood. Crushed rock/river stone shall not be used for edging. Edging shall not adversely affect drainage and the neighboring property. The maximum height of cast concrete decorative edging is 3 ½ inches. The maximum height of other decorative edging shall be 5 inches above grade. In cases where the slope requires the maximum height of 5 inches to be exceeded, the following guidelines are to be followed:

1. Start the edging material at or near flush to a maximum of 2 inches.
2. Maintain a reasonably flat surface to keep the height at the highest point to be less than or equal to 10 inches.
3. In instances where grade change or slopes require materials to retain soil in planting beds or around trees at heights above 10 inches, a retaining wall shall be installed. (See **Section 10.2.11 Retaining Walls**).

4. Existing soil is to be removed rather than adding additional material on top, creating a higher than necessary edging.



Wire fence style decorative edging or wood edging is not permitted. Decorative edging shall be maintained plumb and level. Displaced or damaged decorative edging shall be repaired, replaced or removed.

(B) **Functional Edging.** Functional edging is made of natural or manmade materials (i.e., black vinyl, green steel) which are set into the ground with the upper edge at or near the level of the sod. This edging is not intended to be visible and shall have no more than a two inch exposure above grade. Edging displaced by tree roots or other disturbances shall be reinstalled correctly or removed.

(NOTE) In instances where grade change or slopes require materials to retain soil in planting beds or around trees at heights above those noted above, an appropriate stone or masonry retaining wall shall be installed.

10.2.11 Retaining Walls

Retaining walls are placed around planting beds, trees and grade changes to retain soil. They may be constructed of masonry or natural stone material stacked to create a continuous barrier with a level top. Retaining wall color and styles shall be compatible with the house and neighborhood. Large decorative rocks (“boulders”) are not permitted for retaining walls. See **Appendix B – Landscape Accessory Guide** for authorized use of boulders. Treated or untreated wood, including posts, pilings and railroad timbers are not permitted. Retaining walls will only be as high as needed to prevent soil erosion and shall be backfilled to no less than four inches from the top of the wall.

10.2.12 Plant Replacement

Homeowners may replace shrubs, ground covers and annual plants in the same planting beds with similar items without additional approval. Initial landscape plan quantities shall be maintained unless the growth of existing planting fills the designated planting bed without the need for replacement plants. Changes in the quantity, size or shape of planting beds shall require approval.

10.2.13 Trees

Large and small trees provide the framework for a successful landscape plan. Shade provided by trees increases outdoor comfort and indoor utility conservation. Space trees properly to allow room for future growth and to avoid conflicts with the house and paved areas.

Owners shall maintain all shrubbery, sod, trees and other landscaping installed on their lot in a neat, clean, orderly and healthy condition and to prevent damage to any portion of their property. Trees and shrubs will be kept trimmed to avoid blocking lines of view for vehicles at intersections and interfering with the passage of pedestrians or vehicles on the street.

10.2.14 Unauthorized Removals

Owners who remove trees without approval may be required to provide full size replacements or provide several trees matching/exceeding the diameter of the removed tree. All replacements are subject to Community Association approval.

10.2.15 Street Trees

A “Street Tree” is a hardwood tree that was planted by the Developer and is located approximately eight to 10 feet from the curb line. An application to remove a Street Tree shall be submitted to Community Standards/Modification Department. The application shall include the type of approved tree (see Section 10.2.17) that will be the replacement for the removed tree, and the location where the replacement tree will be planted in the front yard. If these requirements are satisfied, the application may be approved by Community Standards/Modification

Department staff. The removal must include removing the stump or grinding it down below ground level and covering it with grass (sod) if the replacement tree is not planted in the same location as the removed tree. The size of the replacement tree shall be at least 6 feet tall and a minimum of 2.5 inches DBH (diameter at breast height) and at least 30 gallons in size or greater. The replacement tree must be planted within 60 days or sooner from the date of approval.

If there is only one (hardwood) tree in the front yard, it is considered a street tree. If there is more than one hardwood tree in the front yard, the Modifications Committee will designate the street tree.

Except in an emergency, as set forth in Section 10.12.16, no street tree may be removed except after application and approval by the Modification Department.

10.2.16 Dead or Diseased Plantings

Dead or terminally diseased trees, shrubs and all other plantings shall be removed promptly after taking appropriate protective measures to avoid the spread of disease and shall be replaced as necessary to maintain the appearance of the lot as approved by the Community Association. All non-emergency removals require advance approval. For emergency cases, such as fallen trees, contact Community Standards for guidance. For Villa and Cottage properties receiving Community Association landscape maintenance service, the homeowner shall notify the Managed Neighborhood office for landscape maintenance issues. All material resulting from tree removal shall promptly be disposed of and handled properly to avoid the spread of disease.

10.2.17 Approved Street Trees Species:

- | | | |
|--------------------------------|----------------------------------|------------------------|
| • Green Ash | • White Ash | • Aeryn® Trident Maple |
| • American Beech | • Bald Cypress | • Black Gum |
| • Chinese Pistache | • Orange Crush American Hornbeam | • Southern Magnolia |
| • Tulip Polar | • Bosque Elm | • Chinese Elm |
| • Ever clear Elm | • Princeton American Elm | • Chestnut Oak |
| • Laurel Oak | • Live Oak | • Nutall Oak |
| • Pin Oak | • Red Oak | • Shumard Oak |
| • Sun Breaker Swamp White Oak | • White Oak | • Willow Oak |
| • Red Maple | • Sugar Maple | • Trident Maple |
| • Little Gem Southern Magnolia | | |

10.3 Installation of Landscaping

This section applies to both total lot landscape projects and the maintenance and modification of existing landscapes. Existing plantings will be taken into consideration when evaluating compliance with the requirements set forth in **Section 10.3.7 Selection of Plantings. Note: Landscaping other than sod lawns shall not be installed in the front or rear sod buffer areas. See Section 10.3.3 Lawn Grass**

10.3.1 Landscaping Purpose

Lot landscaping is intended to serve both aesthetic and environmental purposes. From an aesthetic perspective, landscaping shall be adequate to properly complement the house, lot, and surrounding areas. Landscaping is used to frame and soften the house, screen mechanical equipment and other unsightly areas, provide privacy, and add interest to the home’s facade. Consideration shall be given to the landscaping on surrounding lots to avoid conflicts such as planting large trees closer together than is recommended, and to tie planting beds and grassed areas together smoothly along property lines. From an environmental perspective, landscaping provides a means for stabilizing the soil and controlling erosion. The general landscaping guidelines have been developed to address these two purposes.

10.3.2 Minimum Landscaping Standards

General landscaping guidelines have been developed to provide a minimum standard of landscaping for each lot and to maintain the appearance and value of the whole community. The general landscaping and addition of hardscape guidelines will vary between lots based on the lot size and the proximity to adjoining areas such as, but not limited to lagoons, golf courses, and common areas. The size and location of owner installed landscape and

hardscape will be individually judged on the lot size, percentage of sod, landscape and hardscape. Community uniformity is paramount. Native/existing trees will be considered when determining the size and quantity of plantings to satisfy the above. Basic planting requirements should, at a minimum, address the issues discussed below.

10.3.3 Lawn Grass

- Acceptable grasses include Zoysia, hybrid Bermuda, Centipede and St. Augustine. Common Bermuda, Bahia, and similar grasses are not permitted.
- Reference **Section 10.3.2 Minimum Landscaping Standards** in the application of this section.
- A ten foot buffer along the street curb will have either sod or landscaping; hardscape of any form, with the exception of landscape edging is not permitted. A two foot sod buffer shall be maintained along the street curb. Consideration will be given, but not limited to large trees, mailbox landscaping, driveway to curb intersection, and utility installations located in this two foot buffer. Where sod is not possible, edging should be used to control erosion and migration of mulch. Retaining walls are permissible to control significant elevation changes.
- A ten feet sod buffer shall be maintained in the rear of the property. Consideration will be given to:
 - a) landscaping in lots where the rear property line is beyond the sod area, such as in a wooded area.
 - b) landscaping beds at the rear or side property lines where the beds are surrounded by sod i.e. bounded by a berm, common areas, golf course area, and lagoon buffers.
 - c) the property line is against a berm.
 - d) unusual/unique situations. In all cases erosion /migration of soil or landscape mulch is a primary concern especially near drainage easements and maintained areas. The top slope and banks of lagoons are included in the sod buffer.
- A two foot sod buffer shall be maintained on the sides of the property to allow drainage in swales between homes. Other landscape materials, such as one inch river rock, stepping stones, pine straw and other mulch materials, shall be considered in swales on a case by case basis where lawn grass cannot be maintained as long as efficient swale drainage is preserved. (See **Section 10.2.5 Swales**)
- The area within three feet of the home is not to be sodded to allow installation of appropriate foundation plantings.

NOTE: This restriction does not apply to homes in Jasper County (see Appendix G – Guidelines for Homes in Jasper County Section of Sun City Hilton Head), homes in Strawberry Hill, or for homes with less than 15 feet between them.

The Lot Owner shall hold harmless the Developer and the Community Association for any property damage, including damage to the house, caused by alterations to the original property grades in connection with design, installation, or maintenance of the owners landscaping done by the owner or a hired contractor.

10.3.4 Foundation Plantings

Foundation plantings soften walls and break up bare areas. Large shrubs provide vertical accent on windowless wall areas, and at house corners. Medium shrubs soften and hide the foundation area, and can be used under windows without excessive pruning. Foundation planting beds shall be a minimum of 3 feet wide and are required around the entire perimeter of the house, except homes with room, sunroom and/or screen room additions or if less than 15 feet between homes or for those homes in Jasper County (see **Appendix G – Guidelines for Homes in Jasper County Section of Sun City Hilton Head** for further information).

10.3.5 Privacy Hedging/Plantings

Plantings used for screening or landscaping along property lines shall be located or designed to not interfere with swale drainage and shall be maintained by the homeowner to be aesthetically pleasing to neighboring property owners. Plant overgrowth and weed and grass encroachment on neighboring properties shall be controlled. The maximum height for plantings within 3 feet of the property line is 7 feet above grade. Residents experiencing light nuisances from automobile headlights traveling on adjacent streets may apply for an exception to increase planting heights to a maximum of 7 feet above grade, subject to verification and approval. Such increased height plantings shall not block neighbors' views nor impede the line of sight for oncoming traffic at intersections.

10.3.6 Distribution of Plantings

Plantings shall be uniformly distributed throughout the yard. Approximately 50 percent shall be located from the midpoint of the building to the front and the remainder to the rear.

10.3.7 Selection of plantings

Landscape harmony is accomplished by allowing two or three types of shrubs planted in groups to predominate. Using too many kinds of shrubs with different forms, colors, and textures is visually distracting. Introduce variety with accent shrubs. Use plant materials with seasonal interest such as flowers, interesting leaf shapes for texture changes, berries, and bark color and texture for variety. Approximately 30 percent of the shrubs shall be of the flowering type. Plants used shall meet the criteria and minimum sizes indicated.

10.3.8 Shrubs

Large or accent shrubs: 7 or 5 gallon size for vertical accent or screening, one shrub per 400 square feet of overall lot area. Medium shrubs: 5 or 3 gallon size for foundation planting and seasonal interest, one shrub per 400 square feet of overall lot area. Low shrubs and ground covers: 1 gallon size for low covering, one plant per 400 square feet of overall lot area.

10.3.9 Annual Plants

Landscape plans may include designated locations for annual plants without specifying the particular plants. Annual plants are optional and are not used to satisfy minimum planting quantities.

10.3.10 Landscape Accessories

Landscape accessories are any items placed in the lot that have not already previously discussed in these Design Guidelines, i.e., trellises, plant supports and decorative lighting. Examples of landscape accessories include yard ornaments, bird feeders/ baths, and plant container.

Landscape accessories are subject to the following guidelines:

- All landscape accessories do not require approval except for
 1. Fountains up to approximately 66"
 2. Fireplaces, fire pits and chimineas are permitted in the rear yard only and only gas fueled. Max. fireplace height is 8'.
- The maximum total of ALL accessories shall be no more than 10 (ten) per Lot with the maximum total of 5 (five) in the front. Placement in the 10 foot sod buffer and/or lagoon top of bank to include the slope are not permitted.
- See **Appendix B –Landscape Accessory Guide** for more detailed list and description of landscape accessories.
- Items such as pink flamingos, blue or multi-color bottle trees are not permitted. The Modifications Committee, at its discretion, may add to the list of non-permitted items.

10.3.11 Landscape Structures

All vertical landscape structures are subject to setback line limitations.

11. Plant Covers and Barriers

11.1 Cold Weather Protection

Homeowners may temporarily place fabric covers over plants for protection from freezing temperatures. The use of such covers will be limited to periods of actual freezing weather and will be removed once the temperature is above freezing. Covers shall not be placed over plants for extended periods and shall not be used as shelters to “winter over” tropical plants that are inappropriate for the Sun City Hilton Head climate zone.

11.2 Wildlife Protection

Homeowners may use lightweight black netting to protect plantings from wildlife damage. Netting shall be draped over the plants and secured inconspicuously to avoid blowing away. The use of any type of fencing material (i.e., wood, wire, heavy vinyl) as wildlife barriers is not authorized.

12. Reviewing Body and Enforcement of Instruments

In the event of a violation of these Design Guidelines, the Board may take any action authorized by the By-laws or the CC&Rs, including any applicable Supplemental CC&Rs. The Board may enforce compliance by removing or remedying the violation and/or seeking injunctive relief requiring the removal or remedying of the violation. In addition, the Board shall be entitled to recover the costs incurred in enforcing compliance and/or impose a fine against the Lot upon which such violation exists, which fine shall not exceed ten percent (10 percent) of the cost of achieving compliance, against the Lot upon which such violation exists (including, without limitation, amounts paid to others to remove or remedy the violation, staff time and administrative costs incurred, any legal costs or court costs incurred, and an amount reasonably reflecting the cost of funds expended in order to achieve compliance).

13. Changes to the Design Guidelines

13.1 Right to Amend

The Board may amend the Design Guidelines at any time.

13.2 Change Process

The Modifications Committee will prepare proposed changes to the Design Guidelines based on emergent requirements or homeowner suggestions. The Board will review the proposed changes for final approval. Homeowners may forward written suggestions for Design Guidelines changes to the **Chairperson** of the Modifications Committee.

13.3 Changes or Amendments Not Retroactive

Any changes or amendments to the Design Guidelines shall only apply to modifications commenced after the date of such amendment. Changes shall not require modification or removal of structures previously approved once the approved construction has commenced.

14. Reviewing Body Subcommittees

14.1 Establishment of Subcommittees

The Modifications Committee may, as it deems necessary, establish and abolish subcommittees of the Modifications Committee relating to the performance of specific duties to assist the Modifications Committee.

14.2 Composition

A Modifications Committee Subcommittee shall consist of not less than 3 or more than 9 members. The Modifications Committee **Chairperson** shall appoint all members of a Reviewing Body Subcommittee. The **Chairperson** will have authority to recruit and dismiss Subcommittee members. At least one Modifications Committee Subcommittee member shall also be a member of the Modifications Committee and shall serve as the **Chairperson** of the Subcommittee.

14.3 Qualifications

Appointees to Modifications Committee Subcommittees do not need to be owners, lessees or residents but shall possess qualifications such as the Modifications Committee, at its discretion, requires.

14.4 Subcommittee Duties

The operation and procedures of a Modifications Committee subcommittee shall be established by the Modifications Committee upon its formation. Any authorized agent of the Modifications Committee, or of any subcommittee established by the Modifications Committee, shall be authorized to perform the plan review and inspection of Lots required pursuant to these Design Guidelines.

14.5 Review of Subcommittee Decisions

Decisions of a Modifications Committee subcommittee may be reviewed, approved, disapproved or amended by the Modifications Committee, at its sole discretion.

15. Declarant's Improvements

15.1 Declarant Development Plan

As part of the planning and development of Sun City Hilton Head, the Declarant has prepared a development plan and provided certain architectural designs, color palettes, landscaping design packages, parks, park preserves (open space), streets, model home packages, a sales pavilion and amenities.

15.2 Changes

Market conditions, styles, marketing strategies, and other factors may cause the Declarant to change the type of models, size of homes, location of future amenities or streets, color palette of homes, landscaping styles or plant materials, construction methods or materials, or the landscaping on common area.

16. Authorization by the Board of Directors

These Design Guidelines have been prepared by the Board for use at Sun City Hilton Head and may be amended from time to time by the Board.

17. APPENDIX A – Building Setbacks

17.1 Residential Areas

The building setbacks described below are the minimum applicable to Sun City Hilton Head and recognized by the Reviewing Body. Notwithstanding any other provision of law, all building setbacks shall meet these requirements or greater, as detailed in the individual plot plan for each property, for such buildings which are built by Declarant pursuant to approvals obtained from Beaufort or Jasper County or the City of Hardeeville, as applicable.

Front Yard: 10' Minimum

Side Yard: 5' Minimum

Side Yard Corner Lots: 10' Minimum

Rear Yards: 10' Minimum

17.2 Common Areas Owned by the Community Association

Most of the non-residential areas of Sun City Hilton Head will be Common Area, as defined in the CC&Rs. Common Area and park preserves, the sales pavilion and model homes, community commercial, and other non-residential uses will have various required building and setback requirements which may differ from those in paragraph 17.1. These requirements are outlined in the Del Webb Specific Plan Development Guidelines.

18. Appendix B – Landscape Accessory Guide

- A) All landscape accessories as noted below do NOT require advance approval. Colors, materials, style, size, quantity and placement shall be compatible with the house and the neighborhood.
- B) Homeowners may mix and match accessory types listed below, subject to individual type limits. The maximum total of ALL accessories shall be no more than 10 (ten) per lot with no more than 5 (five) in the front lot area. (Note: Accessories placed on uncovered patios are included in the count.)
- C) Placement in the 10 foot sod buffer and/or the lagoon top of bank to include the slope is not permitted.
- D) For villa, cottage and homes on the north side of Hwy. 278 with maintained landscaping, accessories are placed in landscape beds at homeowner's risk. See **Appendix E – Landscape Accessories.**
- E) Dimensions exceeding as noted in **Appendix B – Landscape Accessory Guide** will be reviewed by the Modifications Committee on a case by case basis.

Type	Maximum Height	Maximum Quantity Per Item	Notes
Bird Baths	3 feet	1 per front/1 per rear	
Bird Feeders/Houses	6 feet on pole	5 in rear yard only	Includes bee/butterfly houses
Martin/Bat House	20 feet	1 per rear yard	2 level limit
Decorative Furniture	3 feet high	2 per front	At least 15 feet from curb
Plant Stands	5 feet wide	2 per rear	In planting beds or on porch
Large Rocks/Boulders	30 inches	See “B” above for number allowed	Planting beds only
Miniature Structures	3 feet on ground, 18 inches on wall	2 per rear yard	Wishing wells, lighthouses, bridges. Rear planting beds only.
Lawn Ornaments, Statues, all other Accessories	3 feet on ground, 18 inches on wall	See “B” above for number allowed	
Plant Containers/Pots in Planting Beds or on Hardscape	3 feet	See “B” above for number allowed	Disposable nursery containers not permitted. Must contain live plants.
Plant Containers on Driveways	3 feet	1 on each side of garage door	No more than 3 feet from wall. Must contain live plants.
Plant Supports	6 feet	1 per front, 3 Max 2 per rear	See Section 9.5 Plant Supports
Brackets & Flags		2 in front	See Section 9.8 Flags for size and placement
Decorations attached to the walls	As noted in Section 8.18 Decorations	As noted in Section 8.18 Decorations	See Section 8.4.5 Trellises for size and placement
Signs	As noted in Section 8.16.2 Authorized Signs	As noted in Section 8.16.2 Authorized Signs	See Section 8.16.2 Authorized Signs for size and placement. See Section 8.16.1 Prohibited Signs including name and street number except as installed by the developer.
Fountains	Approx 66”		See Section 10.3.10
Fireplaces	8 feet		See Section 9.9 Outdoor kitchens
			See Section 10.3.10 Landscape Accessories
Pet Invisible Fences			In front and rear yards

19. Appendix C – Approved Inert Materials

19.1 Inert Landscape Materials

Approved inert landscape materials shall include: natural wood bark, hardwood mulch, rock and/or stone of naturally pigmented color (i.e., as found in native form), rubber, and other materials which blend with the house and neighborhood as may be approved by the Modifications Committee from time to time. Natural pine straw may be used in bedding, around shrubs and trees, and along the exterior walls of the dwelling. Inert landscape materials are not acceptable as a sod substitute. Determination of whether a material is acceptable for inclusion in any specific situation shall be made by the Modifications Committee. No artificially colored or painted rock shall be permitted. No form of crushed stone can be used as mulch in landscape beds. Ground cover or inert material shall not be used to spell out names, nicknames, names of states, city athletic teams, slogans, states, emblems, geometric patterns, or any other communication.

19.2 Inert Hardscape Materials

Approved inert hardscape materials shall include: concrete, brick, stone, concrete pavers, textured and painted coatings, natural pebble stone/epoxy coating, and other materials that may be approved by the Modifications Committee from time to time. Driveways shall be constructed of concrete or interlocking concrete pavers.

20. Appendix D – Commonly Used Ornamental Landscaping

(See Section 10.2.17 Approved Tree Species for approved street tree species)

D = Deciduous E = Evergreen

Large Trees – Space thirty to forty feet apart; and twenty feet minimum from buildings. Trees are deer resistant to extent edible parts can be protected until they grow out of reach of the deer.

D-Florida Maple (*Acer floridanum*)

D-Red Maple (*Acer Rubrum*)

E-Southern Magnolia (*Magnolia grandiflora*) *

D-Chinese Pistache (*Pistacia chinensis*) *

D-Chinese/Lacebark Elm (*Ulmus parifolia*)

D-Pin Oak (*Quercus Palustris*) *

D-Shumard Oak (*Quercus shumardii*) *

D-Black Tupelo (Black Gum) (*Nyssa sylvatica*) *

E-Cathedral Live Oak *

D-Swamp Chestnut Oak (*Quercus michauxii*)

D-Willow Oak (*Quercus phellos*)*

E-Live Oak (*Quercus virginiana*) *

*RECOMMENDED

Small Trees – Space 15 to 20 feet apart; and 10 feet minimum from buildings. Trees are generally deer resistant to extent edible parts can be protected until they grow out of reach of the deer.

D-Japanese Maple (*Acer palmatum*)

D-River Birch (*Betula nigra*)

D-Redbud (*Cercis canadensis*)

E-Leyland Cypress (x *Cupressocyparis leylandii*)

E-Nelli R. Stevens Holly (*Ilex aquifolium* x *cornuta* ‘Nellie R. Stevens’)

E-East Palatka Holly (*Ilex* x *attenuata* ‘East Palatka’)

E-Foster Holly (*Ilex* x *attenuata* ‘Fosteri’)

E-Savannah Holly (*Ilex* x *attenuata* ‘Savannah’)

E-Weeping Yaupon Holly (*Ilex vomitoria* ‘pendula’)

D-Goldenrain Tree (*Koelreuteria paniculata*)

D-Crape Myrtle (*Lagerstroemia indica* – Varieties ‘Cherokee’, ‘Muskogee’, ‘Natchez’, and ‘Tuscarora’)

E-Tree Form Wax Leaf Privet (*Ligustrum lucidum*)

E-Little Gem Magnolia (*Magnolia grandiflora* ‘Little Gem’)

D-Saucer Magnolia (*Magnolia soulangiana*)

E-Sweet Bay Magnolia (*Magnolia virginiana*)

D-Calloway Crabapple (*Malus pruniflora* ‘Calloway’)

E-Tree Form Wax Myrtle (*Myrica cerifera*)

E-Spruce Pine (*Pinus glabra*)

E-Loblolly Pine (*Pinus taeda*)

D-Japanese Flowering Cherry (*Prunus serrulata* ‘Kwanzan’)

D-Yoshino Cherry (*Prunus yedoensis*)

D-Aristocrat Pear (*Pyrus calleryana* 'Aristocrat')
E-Palmetto (*Sabal palmetto*)
E-Windmill Palm (*Trachycarpus fortunei*)

Large or Accent Shrubs (5-7 Gallon) – Space 6 to 10 feet apart and 5 feet minimum from buildings. Shrubs indicated with an “*” are deer resistant. Shrubs indicated with an ‘SH’ require shade.

E-Anise* (*Illicium anisatum*)
E-Azalea SH (*Azalea indica* – Varieties ‘Formosa’*, ‘George L. Tabor’, ‘G.G. Gerbing’, ‘Judge soloman’, ‘President Clay’, ‘Red Formosa’, and ‘Southern Charm’*)
Semi E-Butterfly Bush (*Buddleia davidii*)
E-Bottlebrush* (*Callistemon citrinus*)
E-Camellia SH (*Camellia sasanqua*)
E-Chinese Fringe (*Loropetalum chinese*, cultivars; Hines Prupole leafe, Burgandy, Blush)
E-Pampas Grass* (*Cortaderia selloana*)
Semi E-Sago Palm* (*Cycas revoluta*)
E-Gardenia* (*Gardenia jasminoides*)
E-Burford Holly* (*Ilex cornuta* ‘Burfordii’)
E-Wax Leaf Privet* (*Ligustrum lucidum*)
E-Banana Shrub* (*Michello Figo*)
D-Variegated Maiden Grass (*Miscanthus sinensis* ‘variegata’)
E-Waxmyrtle* (*Myrica Cerifera*)
E-Nandina* (*Nandina domestica*)
E-Oleander* (*Nerium oleander*)
E-Tea Olive* (*Osmanthus fragrans*)
E-Fortune’s Tea Olive* (*Osmanthus fortunei*)
E-Firehorn (*Pyracantha koidzumi*)
E-Pittosporum (*Pittosporum tobira*)
E-Podocarpus Yew* (*Podocarpus macrophyllus maki*)
D-Purple Fountain Grass (*Pennisetum setaceum* ‘Rubrum’)
E-Sweet Viburnum* (*Viburnum odoratissium*)
E-Laurustinus* (*Viburnum tinus*)

Medium Shrubs (3-5 Gallon) – Space 3 to 4 feet apart; and 2 feet minimum from buildings. Shrubs indicated with an “*” are deer resistant. Shrubs indicated with an ‘SH’ require shade.

E-Abelia (*Abelia grandiflora*)
D-Barberry (*Berberis thunbergii* ‘Rose Glow’ or ‘Crimson Pygmy’)
E-Boxwood* (*Buxus microphylla*)
E-Dwarf Bottlebrush* (*Callistemon citrinus* ‘Little John’)
E-Dwarf Burford Holly* (*Ilex cornuta* ‘Burfordii nana’)
E-Carissa Holly* (*Ilex cornuta* ‘Carissa’)
E-Dwarf Yaupon Holly* (*Ilex vomitoria* ‘Nana’ or ‘Schellings’)
E-Florida Jasmine (*Jasminum floridum*)
Semi E-Primrose Jasmine (*Jasminum mesnyi*)

E-Dwarf India Hawthorn (*Raphiolepis indica*)
E-Yucca* (*Yucca filamentosa*)
E-Sanankwa Viburnum* (*Viburnum Suspensum*)

Low Shrubs or Groundcovers (1 Gallon) – Space 1 to 6 feet apart; and 2 feet minimum from buildings. Shrubs indicated with an “*” are deer resistant. Shrubs indicated with an ‘SH’ require shade. Shrubs indicated with a ‘V’ are vines to be used with support.

E-Hollyfern SH (*Cyrtomium falcatum*)
E-African Iris* (*Diets vegeta*)
E-Dwarf Gardenia* (*Gardenia jasminoides ‘radicans’*)
E-Carolina Jessamine V (*Gelsemium sempervirens*)
Semi E-Daylily (*Heemerocallis hybrida*)
D-Lantana* (*Lantana camara*)
E-Big Blue Liriope (*Liriope muscari ‘Big Blue’*)
E-Variegated Liriope (*Liriope muscari ‘Silver Sunproof’*)
E-Goldflame Honeysuckle V (*Lonicera x heckrottii*)
E-Trumpet Honeysuckle V (*Lonicera sempervirens*)
E-Blue Pacific Juniper* (*Juniperous conferta ‘Blue Pacific’*)
E-Parson’s Juniper* (*Juniperous davorica ‘Expansa’*)
E-Blue Rug Juniper* (*Juniperous horizontalis ‘Wiltonii’*)
E-Dwarf Japanese Garden Juniper* (*Juniperous procumbens ‘Nana’*)
E-Dwarf Nandina* (*Nandina domestica ‘Harbor Dwarf’ or ‘Firepower’*)
E-Banks Rose V (*Rosa bankiae*)
E-Confederate Jasmine* V (*Trachelospermum jasminoides*)
E-Lily of the Nile (*Agapanthus*)

21. Appendix E – Special Guidelines for Villas and Cottages

21.1 Supplemental CC&Rs

Certain properties, commonly known as villas and cottages are identified by Supplemental CC&Rs for Sun City Hilton Head and are subject to additional covenants that affect exterior maintenance and modifications to the property. In the event of conflict, the Supplemental CC&Rs take precedence over the Design Guidelines. Villa and cottage owners shall follow the basic Design Guidelines and the same procedure to request property modifications as other Sun City Hilton Head residents, but shall also comply with the additional limitations noted below. Approval of any modification request does not relieve the resident of any responsibility under the Supplemental CC&Rs.

21.2 Landscaping

For the purposes of this section, landscaping is defined as grass, trees, shrubs, plants and related materials including pine straw. Pine straw is the only mulch permitted in Villas. Landscaping and associated irrigation systems are maintained by Community Association employees or contractors under the direction of the Contract Service Manager.

21.2.1 Exclusive Common Areas

The Community Association may authorize and execute landscaping changes in exclusive common areas at its discretion. Neighborhood associations, in accordance with Supplemental CC&Rs Article 3.4, may request special Standards for the benefit of the lots in the neighborhood such as enhancements to exclusive common area landscaping. All proposed changes shall be approved in advance by the Contract Service Manager.

21.2.2 Restrictions on Villa Landscaping Changes

Per the Supplemental CC&Rs, residents of lots shall not alter landscaping or landscaping equipment and shall not interfere with the Community Association's landscaping activities. If an approved modification to a villa, such as a room addition, disrupts the existing landscaping, the resident will be responsible for the cost and facilitation of relocation or replacement of plantings and irrigation equipment and restoration of sod. While villa and cottage Supplemental CC&Rs restricts homeowners from changing/altering landscaping, the Community Association may consider individual requests for plant substitution on a case by case basis. Landscape changes shall not interfere with the community association landscape standards and are at the homeowner's risk. The neighborhood landscape contractor is not responsible for maintenance, replacement or warranty of owner-installed landscape materials or correction of any damage caused by the homeowner.

21.2.3 Restrictions on Cottage Landscaping Changes

Per the Supplemental CC&Rs, residents of lots shall not alter landscaping or landscaping equipment and shall not interfere with the Community Association's landscaping activities. If an approved modification to a cottage, such as a room addition, disrupts the existing landscaping, the resident will be responsible for the cost and facilitation of relocation or replacement of plantings and irrigation equipment and restoration of sod. While villa and cottage Supplemental CC&Rs restricts homeowners from changing/altering landscaping, the Community Association may consider individual requests for plant substitution on a case by case basis. Landscape changes shall not interfere with the Community Association landscape standards and are at the homeowner's risk. The Community Association's landscape contractor is not responsible for maintenance, replacement, or warranty of owner-installed landscape materials or correction of any damage caused by the homeowner.

21.3 Roofs, Roofing, and Roof Penetrations

The Community Association is responsible for repairing/replacing the roofing on each unit at the Board's discretion.

21.3.1 Roof Alterations

Roof alterations are permitted per **Section 8.7 Roofs**. Residents are cautioned that such alterations are not covered under Community Association property insurance or neighborhood reserves. Any repairs or maintenance related to, or caused by, resident-installed modifications are the responsibility of the resident. A waiver liability agreement shall be signed by the resident prior to the release of any approval notifications.

21.3.2 Antennas

Satellite television antennas may be ground-mounted or roof-mounted (see **Section 8.13.8 Antennas**). If roof-mounted, cables may NOT penetrate the roof surface.

21.4 Exterior Wall and Trim

The Community Association is responsible for repainting these items at the end of the paint's useful life, as determined by the Facilities Maintenance Department and/or the Board. Residents shall not alter exterior colors. Any resident initiated replacements or repairs will be painted to match the original color. An exception, front door and shutter color changes, is discussed below.

21.5 Screen Enclosures and Room Additions

21.5.1 Villa Screen Enclosures and Room Additions

Permitted in accordance with the Design Guidelines on the rear of villas only. Limited to a maximum extension to the building setback line or the boundary of the Exclusive Common Area, whichever is less. Enclosures and Additions will maintain a minimum five feet separation from any common wall or roof of an adjoining villa. Screen enclosures shall have a 1' strip of pine straw installed on any applicable perimeter so that turf does not abut to the screen to preclude interference with landscape maintenance.

Residents are cautioned that such alterations are not covered under Community Association property insurance or neighborhood reserves. Re-roofing of additions and any repairs or maintenance related to, or caused by, resident-installed modifications are the responsibility of the resident.

21.5.2 Cottage Screen Enclosures and Room Additions

Permitted for Cottages in accordance with the Design Guidelines.

21.5.3 Storm Doors

Storm doors are permitted in accordance with the Design Guidelines. Color shall be white, match the existing front door or adjoining trim.

21.6 Landscape Accessories

Landscape accessories are permitted in accordance with the Design Guidelines. Placement is limited to planting beds and paved surfaces, and shall be no closer than 12 inches from grass areas to preclude interference with landscape maintenance. Homeowners place landscape accessories in planting beds at their own risk.

21.7 Landscape Lighting

Low-voltage and solar lighting may be installed per the Design Guidelines. Placement is limited to planting beds and shall be no closer than 12 inches from grass areas to preclude interference with landscape maintenance. Homeowners place landscape lighting in planting beds at their own risk.

21.8 Removable Hurricane Shutters

Removable hurricane shutters are permitted in accordance with the Design Guidelines. They shall only be installed or closed in accordance with Community Association policy during a pending weather emergency and shall be returned to the “nonemergency” condition following such events as outlined in the Schedule of Fees and Community Rules.

21.9 Driveways and Walk Ways

Modifications permitted per the Design Guidelines, i.e., concrete coatings, paver driveways and aprons, paver walkways. No expansion of driveways or walkways is permitted for villas. Expansion is permitted for Cottages, in accordance with Design Guidelines.

21.10 Differences Between Neighborhoods

Because of the difference in architectural styles and layouts of various villa neighborhoods, certain alterations may be permissible in one neighborhood, but not in another.

21.11 Rear Awnings

Awnings are not permitted on the front or sides of villas but may be permitted in the rear yard in certain neighborhoods. A list of the approved neighborhoods will be maintained by the Community Standards Department. Where permitted, the Design Guidelines for awnings apply.

21.11.1 Shutters

Shutters shall not be added or changed where already existing in neighborhoods with stucco homes but may be added or changed in certain other neighborhoods. A list of the approved neighborhoods will be maintained by the Community Standards Department. Color shall match a developer color scheme for the applicable villa series and shall match the front door.

21.11.2 Window Boxes

Window boxes are not permitted in neighborhoods with stucco homes but may be added in certain other neighborhoods. A list of approved neighborhoods will be maintained by the Community Standards Department. Where permitted, the Design Guidelines for window boxes apply.

21.11.3 Front Door Color

Residents may request a different developer-approved front door color than prescribed in their color palette, subject to compatibility with the other villa colors.

21.11.4 Garage Door Screens

Sliding and vertical roller screens are permitted in accordance with the Design Guidelines in certain neighborhoods. A list of approved neighborhoods is maintained by the Community Standards Department.

21.11.5 Changes to Front Gutters/Downspouts

Changes to gutter leaders / downspouts on front elevations of villas may be allowed on a case by case basis. Also see **Section 8.2.1 Lot Drainage/Roof Drainage**.

22. Appendix F – Design Guidelines Changes

While the Modifications Committee sees many applications each year and the majority of these are covered by the provisions of this document, from time to time a resident makes a request which is either not covered by the Design Guidelines or the guideline is ambiguous. Under such circumstances and as previously described in **Section 13.2 Change Process**, the Modifications Committee will determine the acceptability of any new items in accordance with the general guidelines set forth in **Section 1.1 Welcome to Sun City Hilton Head**.

If no guideline exists or a revision to an existing guideline is appropriate, the Modifications Committee will recommend any required changes to the Design Guidelines to the Board in accordance with documented procedures.

23. Appendix G – Guidelines for Homes in the Jasper County Section of Sun City Hilton Head

The homes in Jasper County are designed to simplify and reduce landscape maintenance expenses for residents by limiting trees and planting beds in the front yard and rear yards of their homes.

Should a resident wish to add additional landscaping they shall submit a modification request in accordance with **Section 3.3.1 Application Forms** of the Design Guidelines and shall adhere to the standards of **Section 10.2 Community Standards for Residential Landscaping** in planting and maintaining the additional landscape. Additional landscaping beds that do not use pine straw as mulch shall install Functional Edging to contain pine bark, hardwood, river rock and rubber mulches. (Note: Functional edging is also required when removing pine straw mulch from developer installed beds). All lawns will be maintained in a uniform manner and will be treated as the original lawns installed by the developer.

A 12" wide bed of pine straw, pine bark, hardwood, rubber, or river rock with no plants can be installed with functional edging (see **Section 10.2.10 Landscape Edging**) and permeable weed control fabric along the entire side of homes to preclude problems with landscape maintenance. (Pine straw does not require functional edging or filter fabric to be installed).

Over seeding lawns is permitted in some instances. Resident must consult with Managed Neighborhood personnel for details and approval.

23.1 Managed Neighborhoods

It is highly recommended that residents elevate street tree limbs minimally to 5'6" to accommodate mower operations. Also, having tree limbs elevated will help turf stay healthier by allowing sunlight penetration.

Screened lanais and sunrooms: Clear vinyl panels, windows, and screen panels should have a minimum of 6" buffering (plant bed, rock, mulch, or pine straw) to prevent damage from typical landscape maintenance.

Driveways, patios and walkways should use materials structurally rated and installed to withstand commercial landscape equipment.

It is recommended that new downspout installations have elbows installed at the bottom of the gutter no less than 6" above the turf area.

Homeowners are responsible for all landscaped areas within fenced/enclosed areas.

Edging: All accessories installed in planting beds are recommended to be no closer than 6" to the beds edge and turf.

Steel or aluminum edging is recommended; colors should be green, brown or black.

Wires along bed edging must be buried at a minimum of 12".

Landscape maintenance services will be limited during holidays to avoid damage to lawn decorations.

Hoses should be stored on a wall-mounted hose reel 24" off the ground.

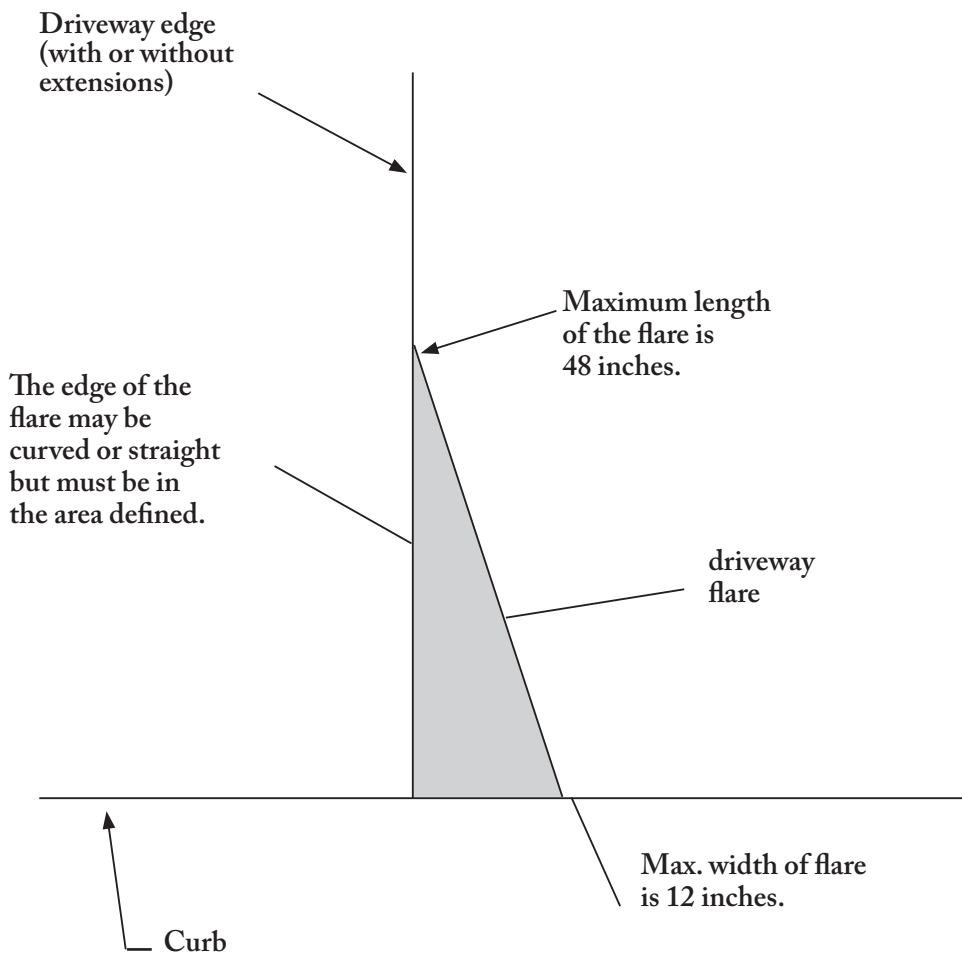
Outdoor kitchens, patio furniture, grills, planters, decorations, and accessories cannot extend beyond hard surfaces and shall maintain a minimum distance of 10” from the surface edge.

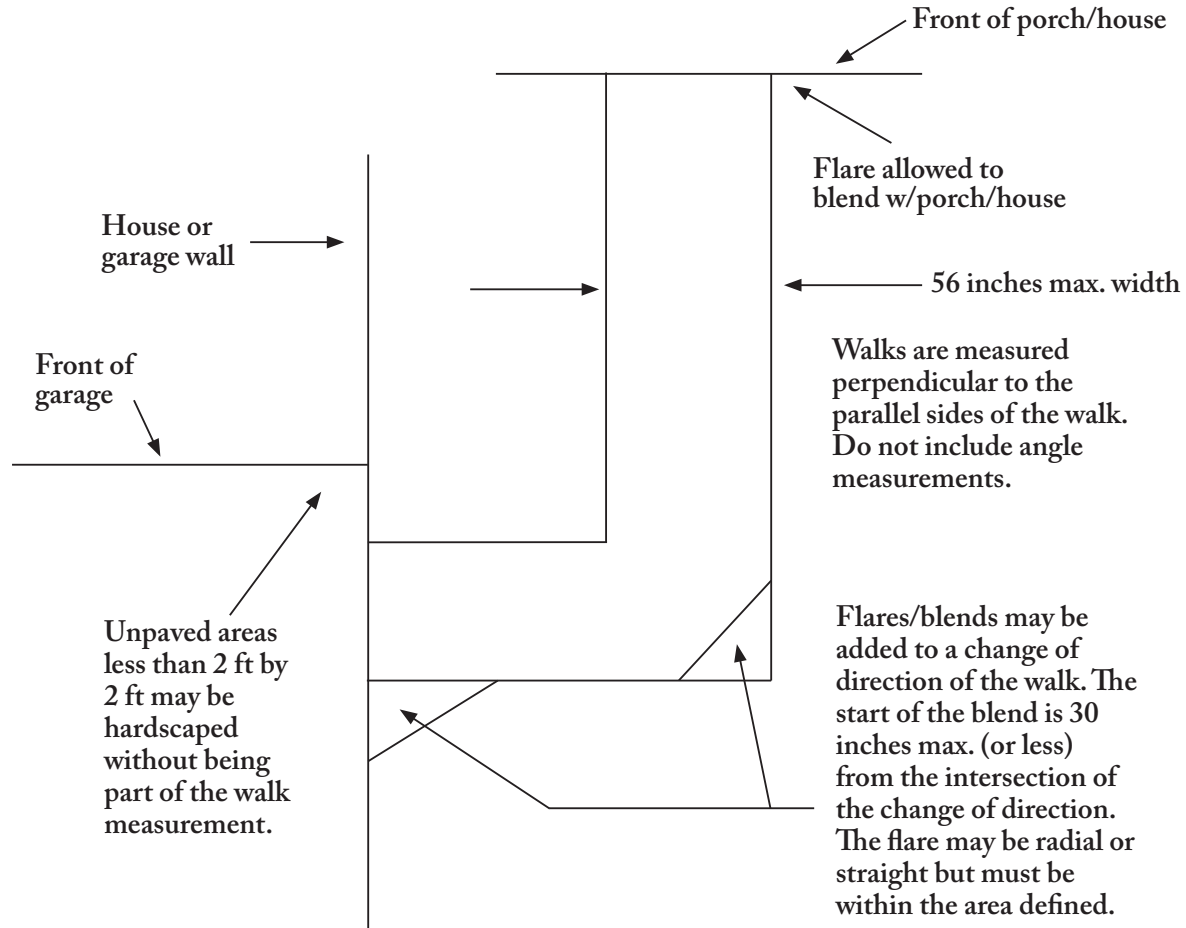
Plant beds shall maintain a minimal distance of 62” between other plantings or structures so as to not impede commercial mower access.

24. Appendix H – Driveway Flare and Front Walkway Description

ADDITION OF A FLARE AT THE INTERSECTION OF THE DRIVEWAY AND THE CURB
REF: Section 8.5 Driveways/Walkways

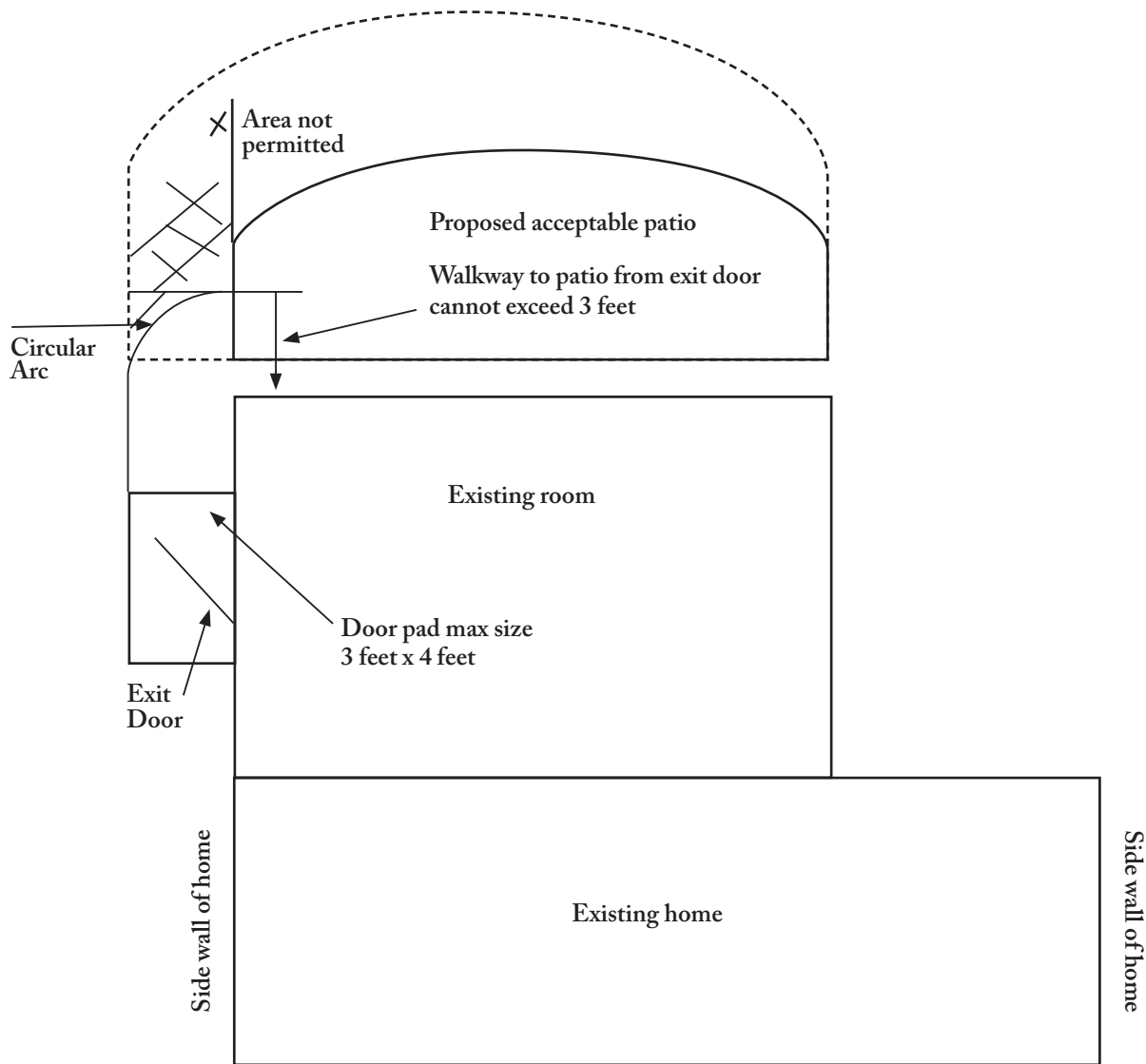
FRONT WALKWAY CHANGES, MODIFICATIONS AND HARDSCAPING
REF: Section 8.5.1 Walkway Size





25. Appendix I – Adding a Patio to an Existing Screen Room or Sun Room with Sidewall Entry Door

ADDING A PATIO TO AN EXISTING SCREEN ROOM OR SUN ROOM
WITH SIDEWALL ENTRY DOOR
(See Section 8.4.1 Screen and Sunroom Additions)



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